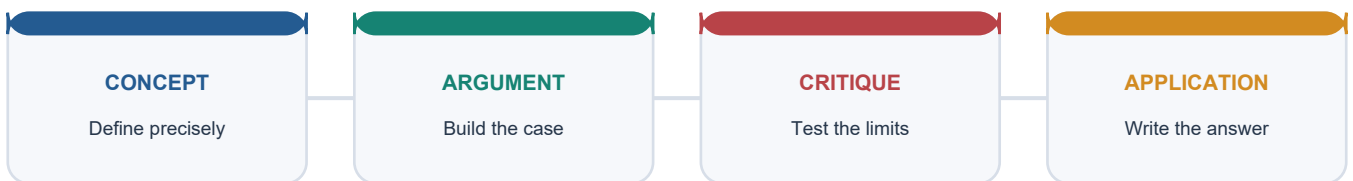


## COMPLETE LEARNING SESSION

# Polity 47 - Comparative Constitutional Design - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

### LEARNING PATH



*Deterministic fallback visual: move from precise concepts through argument and critique to exam application.*

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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# Polity 47 - Comparative Constitutional Design - Complete Learning Session

## BASIC LEARNING SESSION

### SESSION 1 - WHAT UPSC MEANS BY "CONSTITUTIONAL SCHEME"

#### VISUAL FIRST

WHAT UPSC MEANS BY "CONSTITUTIONAL SCHEME"

FUNCTION -> FUNCTION BEFORE LABEL -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA LINK

#### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** A constitutional scheme is the connected design of authority, institutions, rights and accountability.

**Technical definition:** Comparison must hold a constitutional function constant before testing text, context and consequence.

#### ANSWER-GRABBING LINE

A constitutional scheme is the connected design of authority, institutions, rights and accountability.

#### MUST-WRITE KEYWORDS

- constitutional scheme
- function
- institution
- rights
- accountability

**How to use them:** Frame the answer through constitutional scheme; define function, connect institution with rights to explain the mechanism, and use accountability for the decisive comparison or qualification.

A constitutional scheme is not a list of borrowed provisions. It is the connected design through which a country:

1. locates sovereignty and constitutional supremacy;
2. structures the executive-legislature relationship;
3. divides territorial power;
4. protects rights and regulates religion;
5. appoints and empowers courts;
6. amends the Constitution and handles emergencies; and
7. converts votes into representation and public accountability.

**Core method:** compare the same institution across countries in the sequence **context -> similarity -> difference -> constitutional consequence**.

#### Context warning

The same institution can operate differently because of party systems, conventions, federal structure, political history and judicial doctrine. India borrowed mechanisms but adapted them to a written, republican, federal and socially transformative Constitution. **Source is not operational identity.**

#### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Function before label. **Named evidence:** Kesavananda Bharati (1973) and the UK Human Rights Act 1998.

**Analysis:** The same word, such as Parliament or President, can conceal a different legal function. **Qualification:** Compare text with text and practice with practice; do not idealise one system.

## EVIDENCE

Use **Kesavananda Bharati (1973)** and the **UK Human Rights Act 1998** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

A shared institutional title does not establish shared power.

## MAINS USE

Use the seven-axis method before drawing a lesson for India.

## MINI RECAP

method -> source -> mechanism -> consequence -> contextual limit.

# SESSION 2 - MASTER CONSTITUTIONAL MAP

## VISUAL FIRST

MASTER CONSTITUTIONAL MAP

FUNCTION -> SEPARATE CLASSIFICATORY AXES -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** A master constitutional map locates each system by constitutional form, executive design, territorial structure and control.

**Technical definition:** The map is an orientation device whose axes must remain analytically separate.

## ANSWER-GRABBING LINE

A master constitutional map locates each system by constitutional form, executive design, territorial structure and control.

## MUST-WRITE KEYWORDS

- constitutional form
- executive model
- territorial design
- judicial control
- supremacy
- comparison

**How to use them:** Frame the answer through constitutional form; define executive model, connect territorial design with judicial control to explain the mechanism, and use supremacy for the decisive comparison or qualification.

| Country        | Constitutional form                                                    | Executive model                                                       | Territorial form                                       | Constitutional control                                                             |
|----------------|------------------------------------------------------------------------|-----------------------------------------------------------------------|--------------------------------------------------------|------------------------------------------------------------------------------------|
| India          | Written, supreme Constitution; republic                                | Parliamentary; nominal President and responsible Council of Ministers | Holding-together federation with a strong Union        | Supreme Court/High Courts; judicial review plus basic structure                    |
| United Kingdom | Uncodified, evolutionary constitution; constitutional monarchy         | Westminster parliamentary government                                  | Legally unitary with political devolution              | Parliamentary sovereignty; courts generally cannot invalidate an Act of Parliament |
| United States  | Written, rigid, supreme Constitution; republic                         | Presidential; separately elected fixed executive                      | Coming-together federation                             | Diffuse judicial review; federal and state court systems                           |
| Canada         | Written federal constitution plus conventions; constitutional monarchy | Responsible parliamentary government                                  | Federation designed with a comparatively strong centre | Supreme Court and constitutional review                                            |
| Australia      | Written federal constitution; constitutional monarchy                  | Federal Westminster system                                            | Coming-together federation                             | High Court; constitutionally divided powers                                        |

| Country             | Constitutional form                                        | Executive model                                                 | Territorial form                                                                                                                    | Constitutional control                                                      |
|---------------------|------------------------------------------------------------|-----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------|
| <b>France</b>       | Written Constitution of the Fifth Republic; republic       | Semi-presidential: President plus Prime Minister                | Unitary, decentralised state                                                                                                        | Constitutional Council and other courts within a specialised system         |
| <b>Switzerland</b>  | Written federal constitution; republic                     | Plural Federal Council; collegial executive                     | Confederation by name, federation in law                                                                                            | Strong direct democracy; limited review of federal statutes                 |
| <b>South Africa</b> | Written, supreme and transformative Constitution; republic | Parliamentary executive; President elected by National Assembly | Constitutionally decentralised cooperative government across national, provincial and local spheres; not an Indian-style federation | Constitutional Court; enforceable civil-political and socio-economic rights |
| <b>Germany</b>      | Written Basic Law; parliamentary federal republic          | Chancellor-led parliamentary government                         | Federation with direct Land-government participation through Bundesrat                                                              | Separate Federal Constitutional Court; textual eternity clause              |
| <b>Japan</b>        | Written, supreme Constitution; constitutional monarchy     | Parliamentary cabinet; symbolic Emperor                         | Unitary state                                                                                                                       | Supreme Court judicial review; rigid amendment plus referendum              |

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Separate classificatory axes. **Named evidence:** the UK's uncodified constitution and the United States Constitution. **Analysis:** Codification, rigidity, origin and supremacy answer different questions. **Qualification:** An uncodified order may contain extensive written law, while a codified text may have flexible parts.

### EVIDENCE

Use **the UK's uncodified constitution and the United States Constitution** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Never say that the United Kingdom has no constitution.

### MAINS USE

Open a comparison by locating each system on separate axes.

### MINI RECAP

**codified/uncodified != rigid/flexible != supreme/sovereign.**

## SESSION 3 - PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL GOVERNMENT

## VISUAL FIRST

PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL GOVERNMENT

FUNCTION -> RESPONSIBILITY VERSUS FIXED TENURE -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA  
LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Executive systems differ in mandate, tenure and responsibility to the legislature.

**Technical definition:** Parliamentary fusion, presidential separation and semi-presidential dual authority allocate accountability differently.

## ANSWER-GRABBING LINE

Executive systems differ in mandate, tenure and responsibility to the legislature.

## MUST-WRITE KEYWORDS

- **parliamentary**
- **presidential**
- **semi-presidential**
- **collective responsibility**
- **fixed tenure**
- **cohabitation**

**How to use them:** Frame the answer through parliamentary; define presidential, connect semi-presidential with collective responsibility to explain the mechanism, and use fixed tenure for the decisive comparison or qualification.

| Test                   | India / UK parliamentary model                     | US presidential model                                 | French semi-presidential model                                                  |
|------------------------|----------------------------------------------------|-------------------------------------------------------|---------------------------------------------------------------------------------|
| Executive              | Dual: nominal head plus real cabinet               | Single President is head of state and government      | Dual: President plus Prime Minister                                             |
| Selection              | Government emerges from legislature                | President chosen separately through electoral college | President directly elected; PM appointed by President                           |
| Legislative confidence | Cabinet survives only with lower-house confidence  | Executive does not depend on congressional confidence | PM/government responsible to National Assembly                                  |
| Tenure                 | Politically variable; lower house can be dissolved | Fixed presidential and congressional terms            | President fixed term; Assembly can be dissolved under constitutional conditions |
| Power relationship     | Fusion with responsibility                         | Separation with checks and balances                   | Power balance varies with legislative majority                                  |
| Central trade-off      | Accountability, representation and replaceability  | Stability and decisional independence                 | Flexible dual legitimacy but possible executive rivalry                         |



## India versus the United Kingdom

| Dimension                | India                                                                 | United Kingdom                                                                                                 | Consequence                                                                          |
|--------------------------|-----------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------|
| Head of state            | Elected President; republic                                           | Hereditary monarch                                                                                             | India rejects hereditary public office                                               |
| Constitutional authority | Written supreme Constitution                                          | Uncodified constitution; parliamentary sovereignty                                                             | Indian Parliament is legally limited and reviewable                                  |
| Federalism               | Constitutionally divided Union-state powers                           | Legally unitary despite devolution                                                                             | UK devolved bodies do not possess Indian-style coordinate constitutional sovereignty |
| Prime Minister           | May belong to either House, subject to parliamentary membership rules | By convention from House of Commons                                                                            | British democratic responsibility is tied more tightly to Commons leadership         |
| Rights                   | Entrenched Fundamental Rights                                         | Statute, common law and convention, including Human Rights Act framework                                       | Indian courts can invalidate inconsistent legislation                                |
| Courts                   | Strong-form review of legislation                                     | Courts interpret and review executive action but ordinarily cannot strike down primary Westminster legislation | Different meaning of "judicial supremacy"                                            |

**Trap:** The UK Constitution is better called **uncodified**, not literally unwritten. Statutes, judgments, conventions and authoritative works are among its sources.

## India versus the United States

| Dimension                 | India                                                                    | United States                                                      |
|---------------------------|--------------------------------------------------------------------------|--------------------------------------------------------------------|
| Executive                 | Parliamentary; President normally acts on ministerial advice             | Presidential; President personally exercises executive authority   |
| Responsibility            | Council of Ministers collectively responsible to Lok Sabha               | President and secretaries not collectively responsible to Congress |
| Legislature membership    | Ministers are or become legislators                                      | Executive officers cannot simultaneously sit in Congress           |
| Dissolution               | Lok Sabha may be dissolved                                               | President cannot dissolve Congress                                 |
| Removal                   | Government may fall through loss of confidence; President by impeachment | President removable only through impeachment and conviction        |
| Party-government relation | Party majority often joins executive and legislature                     | Institutional separation persists even under unified party control |

## France and cohabitation

France combines a directly elected President with a Prime Minister responsible to the National Assembly. When President and Assembly majority align, the President is usually dominant. During **cohabitation**, the Prime Minister and parliamentary majority gain greater control over domestic government. Thus "semi-presidential" does not mean a permanently equal dual executive.

## Stability lessons from Germany and Switzerland

- Germany's Bundestag may remove a Chancellor only by electing a successor: the **\*\*constructive vote of no confidence\*\***. It combines responsibility with continuity.
- Switzerland's seven-member Federal Council is a collegial executive. Its annually rotating President is not equivalent to a powerful presidential executive.

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Responsibility versus fixed tenure. **Named evidence:** Article 75(3) of India and Articles I-II of the US Constitution. **Analysis:** Confidence links executive survival to the lower House; separation preserves independent tenure. **Qualification:** Party discipline may make parliamentary fusion politically executive-dominant.

## EVIDENCE

Use **Article 75(3) of India and Articles I-II of the US Constitution** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

A US President cannot dissolve Congress.

## MAINS USE

Link institutional form to accountability, stability and deadlock.

## MINI RECAP

confidence -> replaceability; fixed tenure -> stability plus veto points.

# SESSION 4 - CONSTITUTIONAL SUPREMACY, PARLIAMENTARY SOVEREIGNTY AND JUDICIAL POWER

## VISUAL FIRST

CONSTITUTIONAL SUPREMACY, PARLIAMENTARY SOVEREIGNTY AND JUDICIAL POWER  
FUNCTION -> LEGAL SOVEREIGNTY CHANGES REMEDIES -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA  
LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Supremacy identifies the highest legal authority and the remedial power of courts.

**Technical definition:** India combines constitutional supremacy with strong-form review, unlike orthodox UK parliamentary sovereignty.

## ANSWER-GRABBING LINE

Supremacy identifies the highest legal authority and the remedial power of courts.

## MUST-WRITE KEYWORDS

- constitutional supremacy
- parliamentary sovereignty
- judicial review
- invalidation
- basic structure
- incompatibility

**How to use them:** Frame the answer through constitutional supremacy; define parliamentary sovereignty, connect judicial review with invalidation to explain the mechanism, and use basic structure for the decisive comparison or qualification.

| Model | Core principle                                          | Legislative limit                                                                                                                                  |
|-------|---------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------|
| India | Constitutional supremacy with limited constituent power | Courts may invalidate ordinary law and amendments violating the basic structure                                                                    |
| UK    | Parliamentary sovereignty                               | Courts ordinarily cannot invalidate a Westminster Act; a declaration of incompatibility under the Human Rights Act does not itself nullify the Act |
| USA   | Constitutional supremacy                                | Courts may invalidate federal/state law; amendment is governed by Article V                                                                        |

| Model        | Core principle                   | Legislative limit                                                             |
|--------------|----------------------------------|-------------------------------------------------------------------------------|
| Germany      | Basic Law supremacy              | Constitutional Court review plus textual protection under Article 79(3)       |
| South Africa | Express constitutional supremacy | Invalid law or conduct must be controlled through constitutional adjudication |

### India's synthesis

India is neither:

- **British-sovereign**, because Parliament is limited by the Constitution, federal division, Fundamental Rights and judicial review; nor
- an example of unlimited **judicial supremacy**, because courts also derive authority from the Constitution and cannot rewrite policy merely because another choice appears preferable.

Parliament exercises **constituent power**, but *Kesavananda Bharati (1973)* makes it limited by the basic structure. Germany reaches a comparable protective objective through an express **eternity clause**; India's limit is judicially developed.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Legal sovereignty changes remedies. **Named evidence:** *Kesavananda Bharati (1973)* and section 4 of the Human Rights Act 1998. **Analysis:** Indian courts can invalidate unconstitutional law; a UK declaration of incompatibility does not annul an Act. **Qualification:** UK practice is constrained politically and legally in ways that do not amount to Indian constitutional supremacy.

### EVIDENCE

Use **Kesavananda Bharati (1973)** and **section 4 of the Human Rights Act 1998** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Parliamentary sovereignty does not apply in India.

### MAINS USE

Use remedy, not slogan, to show the practical consequence.

### MINI RECAP

source of supremacy -> judicial remedy -> rights consequence.

## SESSION 5 - FEDERAL DESIGN AND UPPER HOUSES

## VISUAL FIRST

FEDERAL DESIGN AND UPPER HOUSES

FUNCTION -> FEDERALISM IS A BUNDLE, NOT A LABEL -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA  
LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Federal design combines territorial self-rule with institutions for shared rule.

**Technical definition:** Residuary power, chamber composition and amendment participation reveal the depth of territorial influence.

## ANSWER-GRABBING LINE

Federal design combines territorial self-rule with institutions for shared rule.

## MUST-WRITE KEYWORDS

- federalism
- self-rule
- shared rule
- residuary power
- upper house
- territorial representation

**How to use them:** Frame the answer through federalism; define self-rule, connect shared rule with residuary power to explain the mechanism, and use upper house for the decisive comparison or qualification.

### Federal design - India, USA and Canada

| Dimension          | India                                                              | USA                                    | Canada                                              |
|--------------------|--------------------------------------------------------------------|----------------------------------------|-----------------------------------------------------|
| Formation tendency | Holding together                                                   | Coming together                        | Holding together/strong-centre design               |
| Residuary power    | Union                                                              | States/people under Tenth Amendment    | Federal Parliament                                  |
| Upper house        | Population-linked variation                                        | Equal State representation             | Appointed regional representation                   |
| Judiciary          | Integrated                                                         | Federal and State systems              | Federal-provincial structure; Supreme Court at apex |
| Unit alteration    | Parliament can alter State areas/boundaries under the Constitution | Required State consent protects States | Provinces are constitutionally protected            |

### Federal design - Australia, Germany and Switzerland

| Dimension          | Australia                         | Germany                                           | Switzerland                                              |
|--------------------|-----------------------------------|---------------------------------------------------|----------------------------------------------------------|
| Formation tendency | Coming together                   | Federal reconstruction                            | Coming together                                          |
| Residuary power    | States                            | Länder unless assigned                            | Cantons unless assigned                                  |
| Upper house        | Equal State representation        | Land governments with weighted votes              | Cantonal representation, reduced for former half-cantons |
| Judiciary          | Federal and State systems         | Ordinary courts plus Federal Constitutional Court | Federal and cantonal systems                             |
| Unit protection    | States constitutionally protected | Länder participate through Bundesrat              | Cantonal autonomy strongly protected                     |

## Indian distinctiveness

India combines federal division with:

- Union residuary power;
- single citizenship;
- an integrated judiciary;
- unequal Rajya Sabha representation;
- emergency centralisation;
- centrally appointed Governors; and
- Parliament's power to alter state boundaries.

Therefore, calling India simply "federal like the USA" misses the design. It is a federation adapted to unity, diversity and post-Partition state-building.

### Rajya Sabha is not the US Senate

- US states receive equal Senate representation; Indian states do not.
- Rajya Sabha members are generally elected indirectly by state legislators; US Senators are directly elected.
- The US Senate has distinctive confirmation and treaty roles; Rajya Sabha has special Indian federal powers under Articles 249 and 312.

### Bundesrat lesson

Germany's Bundesrat represents **Land governments**, not an independently elected second chamber. It therefore inserts state executives directly into federal legislation. Rajya Sabha represents states constitutionally, but its members do not vote as instructed delegations of state governments.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Federalism is a bundle, not a label. **Named evidence:** Articles 1, 246, 248 and the Seventh Schedule.

**Analysis:** India combines constitutional division with Union-weighted devices. **Qualification:** Centralising features do not erase the federal distribution recognised in S. R. Bommai.

### EVIDENCE

Use **Articles 1, 246, 248 and the Seventh Schedule** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Avoid the simplistic quasi-federal slogan.

### MAINS USE

Judge federalism through allocation, shared rule, finance, amendment and review.

### MINI RECAP

**self-rule + shared rule + umpire + finance + safeguards.**

## SESSION 6 - RIGHTS, SECULARISM AND TRANSFORMATIVE CONSTITUTIONALISM

## VISUAL FIRST

RIGHTS, SECULARISM AND TRANSFORMATIVE CONSTITUTIONALISM

FUNCTION -> RIGHTS DESIGN JOINS TEXT AND DOCTRINE -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED  
INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Rights systems differ in text, restriction, remedy and the state's reform role.

**Technical definition:** Indian secularism combines liberty, equality, accommodation and reform rather than absolute separation.

## ANSWER-GRABBING LINE

Rights systems differ in text, restriction, remedy and the state's reform role.

## MUST-WRITE KEYWORDS

- fundamental rights
- secularism
- non-establishment
- religious freedom
- DPSP
- socio-economic rights

**How to use them:** Frame the answer through fundamental rights; define secularism, connect non-establishment with religious freedom to explain the mechanism, and use DPSP for the decisive comparison or qualification.

## India and the United States: secularism

| Dimension              | India                                                                                    | United States                                                                            |
|------------------------|------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| Textual basis          | Preamble, equality provisions and Articles 25-28                                         | First Amendment: Establishment and Free Exercise Clauses                                 |
| General orientation    | Equal citizenship, religious freedom and <b>principled state engagement</b>              | Non-establishment plus protection of free exercise                                       |
| State intervention     | May regulate secular activities, pursue social reform and protect equal access           | Government may regulate under neutral constitutional rules but cannot establish religion |
| Institutional metaphor | Principled distance/equal concern, not complete separation                               | "Wall of separation" is influential but not absolute constitutional isolation            |
| Shared core            | No theocratic state, religious liberty, equality and limits on coercive state preference | Same                                                                                     |

**Trap:** Indian secularism is not permission for arbitrary state interference, and US secularism is not a perfectly sealed wall. In both systems the result depends on rights, equality and doctrine.

## India and France: principled engagement versus laïcité

| Dimension           | India                                                                                                   | France                                                                                      |
|---------------------|---------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| Historical concern  | Managing deep religious diversity while reforming hierarchy and protecting equal citizenship            | Protecting republican public authority and citizenship from clerical domination             |
| Orientation         | Principled distance: engagement, accommodation or reform depending on equality and liberty              | <b>Laïcité</b> stresses state neutrality and a religion-independent public sphere           |
| Public expression   | Constitution protects practice subject to public order, morality, health and reform/equality provisions | Regulation often places stronger emphasis on common republican rules in public institutions |
| Transferable lesson | Accommodation must remain bounded by equality, dignity and non-discrimination                           | Neutrality should not become disproportionate exclusion of individual believers             |

India cannot export a formula mechanically, but it demonstrates that secularism can protect common citizenship while permitting context-sensitive accommodation. France's lesson for India is the importance of state neutrality; India's lesson for France is proportionality and inclusion in a religiously diverse society.

### Rights models

| Country      | High-yield feature                                                                                                                                      |
|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| India        | Justiciable Fundamental Rights plus non-justiciable DPSPs; express reasonable-restriction architecture; positive obligations developed through doctrine |
| USA          | Bill of Rights and Fourteenth Amendment; due process and equal protection; rights applied through constitutional adjudication                           |
| South Africa | Transformative Bill of Rights expressly includes enforceable socio-economic rights subject to constitutional standards                                  |
| UK           | Rights protected through statutes, common law and conventions; parliamentary sovereignty remains central                                                |
| Japan        | Entrenched rights and "procedure established by law"; Indian Article 21 later acquired substantive fairness through judicial interpretation             |

### Procedure established by law versus due process

India borrowed the phrase **procedure established by law** from Japan. *Maneka Gandhi (1978)* transformed Article 21 by requiring procedure to be just, fair and reasonable, bringing Indian protection closer to substantive due-process reasoning without replacing the constitutional text.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Rights design joins text and doctrine. **Named evidence:** *Maneka Gandhi (1978)*, K. S. Puttaswamy (2017) and S. R. Bommai (1994). **Analysis:** Procedure established by law acquired fairness and proportionality discipline through Indian adjudication. **Qualification:** Indian doctrine remains anchored in Indian text and cannot be reduced to imported US due process.

### EVIDENCE

Use **Maneka Gandhi (1978)**, **K. S. Puttaswamy (2017)** and **S. R. Bommai (1994)** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Foreign rights vocabulary is not automatically Indian law.

### MAINS USE

Connect a rights standard to its textual base, test and remedy.

### MINI RECAP

right -> restriction -> test -> remedy -> institutional limit.

## SESSION 7 - COURTS, JUDICIAL REVIEW AND JUDICIAL APPOINTMENTS

## VISUAL FIRST

COURTS, JUDICIAL REVIEW AND JUDICIAL APPOINTMENTS

FUNCTION -> APPOINTMENTS EXPOSE A TRADE-OFF -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Court design determines access, appointment, independence and constitutional remedies.

**Technical definition:** Diffuse and concentrated review, strong and dialogic remedies, and appointment systems require separate comparison.

## ANSWER-GRABBING LINE

Court design determines access, appointment, independence and constitutional remedies.

## MUST-WRITE KEYWORDS

- courts
- judicial review
- appointments
- collegium
- Senate confirmation
- constitutional court

**How to use them:** Frame the answer through courts; define judicial review, connect appointments with collegium to explain the mechanism, and use Senate confirmation for the decisive comparison or qualification.

## Judicial systems

| Dimension                     | India                                                        | UK                                                                                  | USA                                                               |
|-------------------------------|--------------------------------------------------------------|-------------------------------------------------------------------------------------|-------------------------------------------------------------------|
| Court structure               | Integrated hierarchy                                         | Unified UK jurisdictions with distinct legal systems                                | Dual federal and state court systems                              |
| Review of primary legislation | Yes, for constitutional validity                             | Westminster primary legislation ordinarily not invalidated                          | Yes                                                               |
| Constitutional court          | Supreme Court has constitutional and general appellate roles | UK Supreme Court is not a supreme constitutional invalidation court over Parliament | Supreme Court has constitutional and general federal jurisdiction |
| Rights remedy                 | Strong-form constitutional remedies                          | Interpretation/declaration mechanisms under statutory framework                     | Strong-form constitutional review                                 |



## India versus USA: Supreme Court appointments

| Stage                        | India                                                                                                               | USA                                                                                             |
|------------------------------|---------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Formal appointment           | President                                                                                                           | President                                                                                       |
| Decisive selection mechanism | Collegium recommendations under the Judges Cases; executive participates in processing and may seek reconsideration | Presidential nomination plus Senate advice and consent                                          |
| Public legislative hearing   | No constitutionally required confirmation hearing                                                                   | Senate confirmation process is public and political                                             |
| Tenure                       | Until age 65 for Supreme Court judges                                                                               | During good behaviour, effectively life tenure unless resignation, retirement, death or removal |
| Central value protected      | Judicial independence from executive dominance                                                                      | Democratic checks through separated institutions                                                |
| Central risk                 | Opacity, weak external accountability and delay                                                                     | Partisan polarisation and ideological confirmation battles                                      |

**Balanced conclusion:** India needs transparent, reasoned and timely appointments without restoring executive primacy; the US model supplies public accountability but also demonstrates the danger of partisan capture. The objective is **accountable independence**, not mechanical transplantation.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Appointments expose a trade-off. **Named evidence:** the Second Judges Case (1993), Third Judges Case (1998) and NJAC judgment (2015). **Analysis:** India privileges judicial primacy; the US uses political nomination and confirmation. **Qualification:** Transparency can improve accountability without conceding executive primacy.

### EVIDENCE

Use **the Second Judges Case (1993), Third Judges Case (1998) and NJAC judgment (2015)** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

The Constitution does not expressly create the collegium.

### MAINS USE

Conclude with accountable independence, not transplantation.

### MINI RECAP

**selection -> tenure -> removal -> independence -> accountability.**

## SESSION 8 - AMENDMENT DESIGN

## VISUAL FIRST

### AMENDMENT DESIGN

FUNCTION -> RIGIDITY HAS SEVERAL GATES -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Amendment design balances constitutional continuity with democratic adaptation.

**Technical definition:** Rigidity depends on proposal, majority, federal consent, referendum and substantive limits.

## ANSWER-GRABBING LINE

Amendment design balances constitutional continuity with democratic adaptation.

## MUST-WRITE KEYWORDS

- amendment
- Article 368
- Article V
- section 128
- referendum
- basic structure

**How to use them:** Frame the answer through amendment; define Article 368, connect Article V with section 128 to explain the mechanism, and use referendum for the decisive comparison or qualification.

| Country      | Main route                                                                                                                                 | Special protection                                            |
|--------------|--------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|
| India        | Simple majority for some provisions; special majority for Article 368 amendments; half-state ratification for specified federal provisions | Basic structure limits constituent power                      |
| UK           | Ordinary parliamentary legislation can alter constitutional rules, subject to political constraints                                        | No single entrenched amendment procedure                      |
| USA          | Two-thirds proposal route plus ratification by three-fourths of states under Article V                                                     | Very high rigidity; equal Senate suffrage specially protected |
| Australia    | Parliamentary supermajority followed by referendum with national majority and majority in a majority of states                             | "Double majority"                                             |
| Switzerland  | Mandatory referendum for constitutional amendment                                                                                          | Majority of voters plus majority of cantons                   |
| Germany      | Two-thirds in Bundestag and Bundesrat                                                                                                      | Article 79(3) eternity clause                                 |
| Japan        | Two-thirds of each Diet house plus popular referendum                                                                                      | Very rigid political threshold                                |
| South Africa | Differentiated legislative supermajorities; provincial participation for protected matters                                                 | Founding values receive the highest threshold                 |

## Core evaluation

- Flexibility supports democratic adaptation.
- Rigidity protects stability and federal consent.
- Referendums add popular legitimacy but can reduce complex constitutional choices to a binary vote.
- India's graded method is more flexible than the US/Australian/Japanese routes, but the basic

structure supplies a substantive judicial limit.

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Rigidity has several gates. **Named evidence:** Article 368, Kesavananda Bharati and US Article V. **Analysis:** Proposal, supermajority, federal consent and substantive limits produce different kinds of rigidity. **Qualification:** India's graded routes are neither wholly flexible nor an Article V copy.

## EVIDENCE

Use **Article 368, Kesavananda Bharati and US Article V** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

Simple-majority constitutional changes are not all Article 368 amendments.

## MAINS USE

Compare amendment design by gate and protected constitutional value.

## MINI RECAP

proposal -> threshold -> federal consent -> review -> identity limit.

# SESSION 9 - ELECTIONS, REPRESENTATION AND DIRECT DEMOCRACY

## VISUAL FIRST

ELECTIONS, REPRESENTATION AND DIRECT DEMOCRACY

FUNCTION -> ELECTION METHOD FOLLOWS OFFICE FUNCTION -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED

INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Electoral design converts votes into offices and territorial or political representation.

**Technical definition:** Plurality, proportional, two-round and referendum devices create distinct mandates and incentives.

## ANSWER-GRABBING LINE

Electoral design converts votes into offices and territorial or political representation.

## MUST-WRITE KEYWORDS

- elections
- representation
- plurality
- proportional representation
- two-round
- referendum

**How to use them:** Frame the answer through elections; define representation, connect plurality with proportional representation to explain the mechanism, and use two-round for the decisive comparison or qualification.

| Model        | Main feature                                                                            | Constitutional effect                                                          |
|--------------|-----------------------------------------------------------------------------------------|--------------------------------------------------------------------------------|
| India        | Parliamentary government; first-past-the-post for Lok Sabha; indirect elected President | Usually produces territorial representation and a responsible cabinet          |
| USA          | Presidential electoral college; separately elected Congress                             | Dual democratic mandates and institutional deadlock are possible               |
| France       | Direct presidential election plus legislative elections                                 | President may claim a strong personal mandate; cohabitation remains possible   |
| South Africa | Proportional representation; President elected by National Assembly                     | Strong party proportionality with a parliamentary executive                    |
| Switzerland  | Referendums and popular initiatives alongside representative institutions               | Citizens participate directly in constitutional and policy veto/agenda setting |

## India and France: presidential elections

| Dimension       | India                                                                           | France                                               |
|-----------------|---------------------------------------------------------------------------------|------------------------------------------------------|
| Role            | Normally nominal constitutional head                                            | Powerful head within a semi-presidential system      |
| Electorate      | Electoral college of elected MPs and elected state/eligible UT assembly members | Direct popular election                              |
| Voting design   | Proportional representation by single transferable vote; weighted votes         | Two-round majority system if no first-round majority |
| Political logic | Federal balance and parliamentary executive                                     | Independent nationwide presidential mandate          |

The election method follows office design: India's indirect method suits a nominal federal head; France's direct method legitimises a politically active President.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Election method follows office function. **Named evidence:** Articles 54-55 of India and the French two-round presidential election. **Analysis:** India seeks federal acceptability for a normally nominal head; France creates a direct national mandate. **Qualification:** Direct election is not inherently more constitutional; it fits a different executive design.

### EVIDENCE

Use **Articles 54-55 of India and the French two-round presidential election** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Identical office titles do not imply identical electoral logic.

### MAINS USE

Tie electorate and voting method to powers and accountability.

### MINI RECAP

office function -> electorate -> mandate -> consequence.

## SESSION 10 - HEADS OF STATE AND PARDON POWER

### VISUAL FIRST

HEADS OF STATE AND PARDON POWER

FUNCTION -> CLEMENCY BELONGS TO EXECUTIVE DESIGN -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED

INDIA LINK

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Heads of state differ in selection, advice, authority and accountability.

**Technical definition:** Indian, US and French Presidents occupy parliamentary, presidential and semi-presidential structures respectively.

### ANSWER-GRABBING LINE

Heads of state differ in selection, advice, authority and accountability.

### MUST-WRITE KEYWORDS

- head of state
- President
- Article 72
- pardon
- ministerial advice
- preemptive pardon

**How to use them:** Frame the answer through head of state; define President, connect Article 72 with pardon to explain the mechanism, and use ministerial advice for the decisive comparison or qualification.

### India versus USA: presidential pardon

| Dimension               | India: Article 72                                                                                                                             | USA: Article II                                                                                                           |
|-------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| Office context          | Nominal President in parliamentary government                                                                                                 | Real executive President                                                                                                  |
| Advice                  | Exercised on binding ministerial advice                                                                                                       | Personal constitutional executive power                                                                                   |
| Subject scope           | Union-law offences, court-martial cases and death sentences                                                                                   | Federal offences against the United States                                                                                |
| Express/external limits | Constitutional scope; cannot replace judicial process arbitrarily; limited judicial review for mala fides, arbitrariness and relevant defects | Does not reach state offences; exception for impeachment; applies only after conduct constituting an offence has occurred |
| Pre-emptive pardon      | Indian analysis remains tied to Article 72, advice and review; do not import the US doctrine automatically                                    | May cover completed conduct before charge or conviction; cannot pardon future conduct                                     |

**Trap:** A US pre-emptive pardon is not a pardon for a future crime. It operates after the conduct has occurred even if prosecution has not begun.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Clemency belongs to executive design. **Named evidence:** Article 72 of India and Article II, section 2 of the US Constitution. **Analysis:** Advice, jurisdiction and review differ because the Presidents occupy different constitutional roles. **Qualification:** A US pre-emptive pardon concerns completed conduct, not future offences.

### EVIDENCE

Use **Article 72 of India and Article II, section 2 of the US Constitution** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Indian presidential clemency is not a personal parallel to US power.

### MAINS USE

Compare scope, advice, limits and judicial review.

### MINI RECAP

mercy power -> office context -> jurisdiction -> limits.

## SESSION 11 - EMERGENCY DESIGN AND CONSTITUTIONAL SAFEGUARDS

## VISUAL FIRST

EMERGENCY DESIGN AND CONSTITUTIONAL SAFEGUARDS

FUNCTION -> EMERGENCY COMPARISON NEEDS SAFEGUARDS -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED  
INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Emergency constitutions temporarily alter ordinary allocations of power and rights.

**Technical definition:** Trigger, approval, duration, federal effect, rights impact and review are the controlling axes.

## ANSWER-GRABBING LINE

Emergency constitutions temporarily alter ordinary allocations of power and rights.

## MUST-WRITE KEYWORDS

- emergency
- rights
- federalism
- parliamentary approval
- duration
- judicial review

**How to use them:** Frame the answer through emergency; define rights, connect federalism with parliamentary approval to explain the mechanism, and use duration for the decisive comparison or qualification.

| Country      | Design lesson                                                                                                                                                 |
|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|
| India        | National, state and financial emergencies permit major centralisation; post-44th Amendment safeguards constrain repetition of 1975-77 abuse                   |
| USA          | No Indian-style single constitutional emergency code; emergency authority is dispersed across Constitution and statutes and remains subject to federal checks |
| Germany      | Emergency design must be read with federal participation and the unamendable democratic-constitutional core                                                   |
| South Africa | A declared state of emergency is constitutionally time-bound, reviewable and rights-limited                                                                   |

Comparative use should identify the safeguard, not merely announce that another country has or lacks an "Emergency." Compare declaration, duration, legislative control, judicial review, federal effect and rights derogation.

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Emergency comparison needs safeguards. **Named evidence:** Articles 352, 356 and 360, the Forty-fourth Amendment and S. R. Bommai. **Analysis:** The constitutional question is how exceptional power is triggered, supervised, limited and normalised. **Qualification:** Different countries disperse emergency authority differently, so labels are unreliable.

## EVIDENCE

Use **Articles 352, 356 and 360, the Forty-fourth Amendment and S. R. Bommai** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

The US has no single Indian-style constitutional emergency code.

## MAINS USE

Evaluate approval, duration, rights, federal effect and review.

## MINI RECAP

trigger -> approval -> duration -> rights -> federal effect -> review.

## SESSION 12 - BORROWED PROVISION VERSUS ADAPTED DESIGN

### VISUAL FIRST

BORROWED PROVISION VERSUS ADAPTED DESIGN

FUNCTION -> BORROWING IS FILTERED ADAPTATION -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA  
LINK

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Constitutional borrowing identifies influence; adaptation explains Indian text and operation.

**Technical definition:** Transplants pass through republicanism, federal diversity, social transformation and judicial doctrine.

### ANSWER-GRABBING LINE

Constitutional borrowing identifies influence; adaptation explains Indian text and operation.

### MUST-WRITE KEYWORDS

- borrowed provision
- adapted design
- constitutional borrowing
- transplant
- Indian Constitution
- institutional context

**How to use them:** Frame the answer through borrowed provision; define adapted design, connect constitutional borrowing with transplant to explain the mechanism, and use Indian Constitution for the decisive comparison or qualification.

| Indian feature                           | Often-linked source | Indian adaptation                                                                 |
|------------------------------------------|---------------------|-----------------------------------------------------------------------------------|
| Parliamentary government                 | UK                  | Written Constitution, republican head, judicial review and federalism             |
| Fundamental Rights and judicial review   | USA                 | Express restrictions, writs, DPSP interaction and basic structure                 |
| Strong-centre federation/residuary power | Canada              | Union of constitutionally organised states plus asymmetric devices                |
| Concurrent List/joint sitting            | Australia           | Different upper-house representation and amendment system                         |
| DPSPs                                    | Ireland             | Indian social-revolution programme; non-justiciable but fundamental in governance |
| Amendment elements                       | South Africa        | Three Indian amendment routes plus basic-structure limitation                     |
| Procedure established by law             | Japan               | Expanded by Indian due-process-like fairness doctrine                             |
| Fundamental Duties                       | former USSR         | Non-justiciable civic duties in Part IVA                                          |

**Prelims rule:** Learn the source. **Mains rule:** Explain how India changed the source to fit its own constitutional objectives.

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Borrowing is filtered adaptation. **Named evidence:** Articles 74-75, Part III, Part IV and the Seventh Schedule. **Analysis:** India placed borrowed mechanisms inside a republican, federal and transformative charter. **Qualification:** Conventional source attributions describe ancestry, not unchanged donor meaning.

## EVIDENCE

Use **Articles 74-75, Part III, Part IV and the Seventh Schedule** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

Borrowed provisions do not retain donor-country operation unchanged.

## MAINS USE

For each borrowing, state source, Indian alteration and consequence.

## MINI RECAP

source -> adaptation -> Indian purpose -> present operation.

# SESSION 13 - DIRECT PYQ ANSWER ENGINES

## VISUAL FIRST

DIRECT PYQ ANSWER ENGINES

FUNCTION -> PYQ ANSWERS REQUIRE CONTROLLED COMPARISON -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED

INDIA LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** A PYQ answer engine converts the directive into controlled comparative axes.

**Technical definition:** Each paragraph should connect common function, difference, reason, consequence and qualification.

## ANSWER-GRABBING LINE

A PYQ answer engine converts the directive into controlled comparative axes.

## MUST-WRITE KEYWORDS

- PYQ
- directive
- comparison
- consequence
- qualification

**How to use them:** Frame the answer through PYQ; define directive, connect comparison with consequence to explain the mechanism, and use qualification for the decisive comparison or qualification.

### 13.1 2018 GS-II: basic tenets of Indian and US political systems

**Thesis:** Both are constitutional, democratic, republican and federal systems with judicial review, but India combines parliamentary responsibility and a strong-centre federation while the USA uses presidential separation and coordinate-state federalism.

#### Body order:

1. shared constitutionalism, rights, bicameralism, federalism and courts;
2. parliamentary versus presidential executive;
3. fusion versus separation;
4. federal asymmetry: residuary power, citizenship, courts, Senate/Rajya Sabha;
5. rights and amendment differences;
6. consequence: Indian accountability/flexibility versus US stability/checks.



### 13.2 2019 GS-II: what France can learn from Indian secularism

Define the different histories of Indian secularism and French laïcité. Explain India's principled distance, accommodation and reform; identify equality and public-order limits; suggest proportionality, non-discrimination and protection of individual religious freedom as transferable lessons; qualify that French republican history prevents mechanical transplantation.

### 13.3 2020 GS-II: Indian and UK judicial systems

**Thesis:** Both share common-law reasoning, judicial independence and precedent, but the Indian judiciary operates under constitutional supremacy and can invalidate legislation, whereas the UK system operates within parliamentary sovereignty.

**Body order:** common law and precedent -> court structure -> constitutional review -> rights remedies -> judicial appointments/independence -> reasoned conclusion.

### 13.4 2022 GS-II: election of Presidents of India and France

Start with the different office designs. Compare electorate, direct/indirect character, voting system, federal weighting, majority logic and political mandate. Conclude that procedure follows function: nominal federal head versus active semi-presidential head.

### 13.5 2023 GS-II: British and Indian parliamentary practice

Because the locally held scan has a manual-verification warning on the final noun, prepare the stable comparative spine: responsible government, cabinet leadership, lower-house confidence, head of state, PM's chamber, constitutional/parliamentary supremacy, federalism, conventions, rights and judicial review. Do not reconstruct uncertain printed wording.

### 13.6 2024 GS-II: Indian and US secularism

Define secular constitutionalism; compare Indian principled engagement/social reform with US non-establishment and free exercise; state shared commitments to liberty and equality; avoid the "India supports all religions, USA completely separates" caricature.

### 13.7 2025 GS-II: pardon power

Compare office context, advice, jurisdiction, express limits, judicial review and pre-emptive pardon. Define pre-emptive pardon precisely as completed conduct pardoned before prosecution/conviction, not future conduct.

### 13.8 2025 GS-II: judicial appointments

Trace India's First-Second-Third Judges cases and NJAC; compare collegium with US nomination and Senate confirmation; evaluate independence, transparency, delay, accountability and politicisation; conclude with accountable independence.

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Pyq answers require controlled comparison. **Named evidence:** UPSC GS-II 2018, 2019, 2020, 2022, 2023 and 2024 questions. **Analysis:** Marks arise from the consequence of a difference, not from a country-fact catalogue. **Qualification:** A third country should reinforce, not displace, the principal India comparator.

## EVIDENCE

Use **UPSC GS-II 2018, 2019, 2020, 2022, 2023 and 2024 questions** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

Do not compare unlike institutions merely because they share a chapter.

## MAINS USE

Use one matrix and end every branch at India.

## MINI RECAP

**demand -> common function -> axes -> consequence -> verdict.**

## SESSION 14 - HIGH-YIELD TRAPS

### VISUAL FIRST

HIGH-YIELD TRAPS

FUNCTION -> TRAPS ARE CATEGORY ERRORS -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA LINK

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** High-yield traps are plausible equivalences defeated by precise institutional distinctions.

**Technical definition:** Exam safety depends on separating titles, sources, legal supremacy and remedies.

### ANSWER-GRABBING LINE

High-yield traps are plausible equivalences defeated by precise institutional distinctions.

### MUST-WRITE KEYWORDS

- **high-yield traps**
- **false equivalence**
- **source country**
- **institutional operation**
- **constitutional supremacy**
- **judicial remedy**

**How to use them:** Frame the answer through high-yield traps; define false equivalence, connect source country with institutional operation to explain the mechanism, and use constitutional supremacy for the decisive comparison or qualification.

- UK Constitution is **uncodified**, not wholly unwritten.
- Parliamentary sovereignty in the UK is not the Indian position.
- Indian Parliament has limited constituent power; it is not an ordinary subordinate legislature.
- Indian and US Presidents are not functional equivalents.
- Both countries use electoral colleges, but the electorates, voting rules and office designs differ.
- Rajya Sabha does not give equal representation to states like the US or Australian Senates.
- Canadian and Indian strong-centre features do not make the two federations identical.
- France is semi-presidential, and cohabitation changes the internal balance.
- Switzerland's annually rotating President is not a US-style executive President.
- Germany's eternity clause is textual; India's basic structure is judicially developed.
- US judicial appointments are not made by the President alone: Senate advice and consent is required.
- US presidential pardon does not cover state offences or impeachment and cannot pardon future acts.
- Indian secularism is not theocracy-friendly state patronage; US secularism is not absolute isolation.
- Borrowing identifies ancestry, not the present constitutional operation.

### WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Traps are category errors. **Named evidence:** Rajya Sabha, US Senate, Canadian Senate and German Bundesrat. **Analysis:** Close options often exchange selection, representation or powers across institutions.

**Qualification:** Some bodies perform overlapping functions without being equivalent.

### EVIDENCE

Use **Rajya Sabha, US Senate, Canadian Senate and German Bundesrat** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

### PRELIMS TRAP

Equal-state representation is not a universal federal rule.

## MAINS USE

Convert every trap into a precise distinction sentence.

## MINI RECAP

label trap -> controlling axis -> exact distinction.

# SESSION 15 - UNIVERSAL MAINS COMPARISON TEMPLATE

## VISUAL FIRST

UNIVERSAL MAINS COMPARISON TEMPLATE

FUNCTION -> COMPARISON MUST PRODUCE A VERDICT -> NAMED EVIDENCE -> CONSEQUENCE -> QUALIFIED INDIA  
LINK

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** The comparison template is a repeatable architecture for constitutional answers.

**Technical definition:** Context, common function, differences, institutional reasons, consequences and qualification form the answer chain.

## ANSWER-GRABBING LINE

The comparison template is a repeatable architecture for constitutional answers.

## MUST-WRITE KEYWORDS

- **template**
- **thesis**
- **axis**
- **consequence**
- **verdict**

**How to use them:** Frame the answer through template; define thesis, connect axis with consequence to explain the mechanism, and use verdict for the decisive comparison or qualification.

**Introduction:** identify both constitutional contexts and the institution being compared.

### Body matrix:

1. source of authority;
2. composition/selection;
3. power and legal limits;
4. accountability/removal;
5. rights/federal consequence;
6. actual operation and one qualification.

**Conclusion:** state the design trade-off and whether India should adapt a principle rather than copy an institution.

**Core firewall:** If Advanced is skipped, this file still closes the official clause and every verified 2018-2025 comparative PYQ identified in the local knowledge base.

## CLOSING RECALL FLOW - UNIVERSAL MAINS COMPARISON TEMPLATE

```

START / CONCEPT: Universal Mains comparison template
|
v
EXACT TERMS: template · thesis · axis · consequence · verdict
|
v
MECHANISM / ARGUMENT: A constant axis allows compact paragraph-by-paragraph comparison.
|
v
CONSEQUENCE / CONTRAST: The template supports 10, 15 and 20-mark demands without generic filler.
|
v
UPSC TRAP / ANSWER-USE: Do not rank countries without a criterion tied to the question.
|
v
ANSWER-GRABBING FORMULATION: The comparison template is a repeatable architecture for constitutional answers.
  
```

### Answer architecture (10/15/20-mark support)

Purpose: sections 1-15 already hold the facts, the master map, the trap list and per-PYQ answer engines. This layer adds the **reusable machinery** those sections do not carry in one place - a demand-type router, comparative theses, mark-scaled comparative structures, a **selectable country evidence bank with an India anchor**, the rule against shallow feature-lists, the "why a transplant behaves differently" principle, limits of comparison, verdict scaffolds and factual-risk controls. It does **not** repeat sections 1-15.

### 16.1 Comparative demand and directive map (route by demand-type, not by year)

| Demand type                     | Directive signals                                                    | Answer spine                                                                                                                                                                        |
|---------------------------------|----------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Feature comparison</b>       | "compare and contrast", "convergence and divergence", "basic tenets" | Shared frame -> similarities -> differences -> <b>constitutional consequence</b> of the difference                                                                                  |
| <b>Lesson-drawing</b>           | "what can X learn from India", "transferable lessons"                | Identify India's working principle -> isolate the transferable <i>principle</i> -> state the limit that blocks a mechanical transplant                                              |
| <b>Evaluation</b>               | "critically examine", "evaluate", "assess"                           | Design A vs design B on named axes -> trade-offs -> graded verdict tied to purpose                                                                                                  |
| <b>Transplant-critique</b>      | "borrowed but adapted", "does the foreign feature fit India"         | Source -> Indian adaptation -> <b>why behaviour differs</b> -> fit verdict                                                                                                          |
| <b>Single-institution match</b> | "election of Presidents", "pardon power", "judicial appointments"    | Hold the function constant -> composition/selection/power/limits/review -> "procedure follows function"                                                                             |
| <b>Secularism/rights model</b>  | "Indian vs US/French model"                                          | Define each model precisely -> shared commitment -> structural difference -> avoid the caricature                                                                                   |
| <b>Source-attribution</b>       | "which features were borrowed and from where"                        | Name the conventionally cited source -> the <b>Indian modification</b> -> the consequence (attribution is ancestry, not operation; keep the borrowed-features detail in Section 12) |

### 16.2 Qualified thesis options for comparative answers

- *India did not copy a constitution; it synthesised one - parliamentary from the UK, rights and review from the USA, a strong-centre federation from Canada, and directive goals from Ireland - fused inside a written, rigid, transformative charter, so ancestry never equals operation.*
- *The comparative question is almost always won on the consequence of a difference, not the difference itself: the point is not that the UK is sovereign-Parliament and India is supreme-Constitution, but what that does to rights protection and judicial power.*

- Lesson-drawing runs one way in the exam - India exports principles (principled secular engagement, PIL access, basic-structure limits) but rarely mechanisms, because founding history and party systems block mechanical transplant.
- Labels deceive: "President", "Senate", "federation" and "secular" name different functions in India, the USA, France, Germany and Switzerland, so a valid comparison must compare functions, not nouns.
- India's design choices privilege accountability and adaptability (fusion of powers, three amendment routes, judicial review) over the stability-through-separation that the US model prizes - a defensible trade-off, not a defect.
- A fair comparison matches like with like - India's constitutional text against another's text and India's working practice against another's practice; pitting an idealised foreign text against messy Indian practice (or the reverse) is the commonest distortion.
- The strongest comparative answers isolate a single operating variable - party system, federal form or judicial doctrine - and show how it makes the same borrowed design behave differently in India.

### 16.3 Mark-scaled comparative structures

| Marks | Architecture                                                                                                                 | Country load                                                       |
|-------|------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------|
| 10    | Frame -> 2-3 sharp similarity/difference pairs -> <b>one consequence</b> -> verdict                                          | India + <b>one</b> comparator, tightly                             |
| 15    | Thesis -> shared constitutionalism -> 3-4 differences on named axes -> consequence + one qualification -> verdict            | India + 1 (occasionally 2) comparators                             |
| 20    | Thesis -> design frame -> executive/federal/rights/review axes -> transplant-adaptation point -> trade-off -> graded verdict | India + 1-2 primary comparators, others as one-line reinforcements |

MEMORY: **Depth over breadth**: a 15-marker comparing India and *one* country well beats a shallow tour of five. Add a third country only as a **one-line** reinforcement.

### 16.4 The no-shallow-feature-list rule (non-negotiable)

- ANALYSIS: A feature list ("UK is uncoded, US is written, India is written...") is **not** an answer. Every compared feature must run to its **constitutional consequence** - what the difference *does* to rights, accountability, federal balance or stability.
- ANALYSIS: Compare the **same function** across systems (how each *selects judges, limits the executive, protects rights*), never an Indian court against a foreign legislature because both sit in the same chapter.
- ANALYSIS: Name the **operating variable** (party system, convention, federal form, judicial doctrine) that makes the same design behave differently - this is where marks are earned.
- ANALYSIS: **End every comparison at India**: a passage on a foreign system that never returns to the Indian consequence earns description marks, not analysis marks.

### 16.5 Country-by-country selectable evidence bank (with India anchor)

Use one comparator well. "Sourcing depth" flags how richly this repository actually supports each country, so you deploy the strong ones and keep the thin ones to a single line.

| Country                     | Design feature this repo sources                                                                                                                                                      | India anchor / contrast (the consequence)                                                                                                                                                               | Sourcing depth here                 |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| FACT: <b>United Kingdom</b> | Uncodified constitution; <b>parliamentary sovereignty</b> (courts cannot strike down an Act); Westminster responsible government; Human Rights Act = <b>weak-form/dialogic</b> review | India took the cabinet model but placed it under a <b>written, supreme, justiciable</b> Constitution with <b>judicial review + basic structure</b> - so rights bind Parliament here, unlike Westminster | Rich (exec, judiciary, sovereignty) |

| Country                    | Design feature this repo sources                                                                                                                                                                                                                                                                                      | India anchor / contrast (the consequence)                                                                                                                                                                             | Sourcing depth here                                 |
|----------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|
| FACT: <b>United States</b> | Written, rigid, supreme Constitution; <b>presidential separation of powers</b> ; coming-together federalism, <b>residuary powers to States</b> ; <b>Senate advice-and-consent</b> on judges; pardon excludes State offences/impeachment/future acts; <b>non-establishment + free exercise</b> secularism; due process | India fused executive and legislature, kept <b>residuary with the Centre</b> , borrowed rights/review but with <b>express restrictions, writs and "procedure established by law"</b> - accountability over separation | Rich (exec, federalism, rights, courts, pardon)     |
| FACT: <b>Canada</b>        | <b>Holding-together, strong-centre</b> federation; <b>residuary power with the centre</b>                                                                                                                                                                                                                             | The chief source of India's <b>strong Union + residuary to the Centre</b> ; India adds single citizenship and asymmetric devices                                                                                      | Moderate (federal design)                           |
| FACT: <b>Australia</b>     | Coming-together federation; <b>Concurrent List</b> and <b>joint-sitting</b> mechanism; equal-State Senate                                                                                                                                                                                                             | India adopted the <b>Concurrent List and joint sitting</b> but with a <b>population-weighted, indirectly elected</b> Rajya Sabha and its own amendment routes                                                         | Moderate (federal mechanics)                        |
| FACT: <b>France</b>        | <b>Semi-presidential</b> Fifth Republic; President + PM dual executive; <b>cohabitation</b> ; <b>laïcité</b> ; directly elected President; Constitutional Council                                                                                                                                                     | India's President is a <b>nominal, indirectly elected</b> head (not semi-presidential); Indian secularism is <b>principled engagement</b> , not strict laïcité                                                        | Rich (executive, secularism, presidential election) |
| FACT: <b>Germany</b>       | Basic Law; Chancellor-led federal republic; <b>Bundesrat</b> = Land-government delegation (shared rule); <b>textual eternity clause (Art 79(3))</b> ; concentrated <b>Federal Constitutional Court</b>                                                                                                                | India's <b>basic structure is judicially developed</b> , not a textual eternity clause; <b>Rajya Sabha ≠ Bundesrat</b> (no Land-government delegation)                                                                | Moderate (amendment, upper house)                   |
| FACT: <b>South Africa</b>  | Written, supreme, <b>transformative</b> Constitution; Constitutional Court; <b>textually enforceable socio-economic rights</b>                                                                                                                                                                                        | India pursues transformation via <b>DPSPs + expanded Article 21 + legislation</b> , not textual socio-economic rights - enforceable text vs doctrinal development                                                     | Moderate (transformative, amendment)                |
| FACT: <b>Japan</b>         | Symbolic Emperor; <b>"procedure established by law"</b> ; rigid amendment <b>plus referendum</b>                                                                                                                                                                                                                      | India borrowed the phrase <b>"procedure established by law"</b> but the SC <b>expanded it toward due-process fairness</b>                                                                                             | Thin (single-point use)                             |
| FACT: <b>Switzerland</b>   | <b>Collegial plural Federal Council</b> ; annually <b>rotating President</b> ; strong <b>direct democracy</b> (referendums)                                                                                                                                                                                           | India rejected a collegial executive for a <b>single cabinet under a PM</b> and chose <b>representative</b> , not direct, democracy                                                                                   | Thin (single-point use)                             |

- **India anchor rule: ANALYSIS:** every comparison must end at India - the marks are for what the foreign design teaches about, or contrasts with, the Indian scheme, not for foreign description.
- **Pick-your-comparator by theme (what this repo sources best):** *executive type* -> **UK / US / France**; *federal formation & residuary* -> **US / Canada / Australia / Germany**; *upper-house model* -> **US & Australia (equal-State) / Germany (Bundesrat) / India (population-weighted)**; *judicial-review model* -> **UK (weak-form) / Germany (concentrated) / US (diffuse)**; *rights & transformation* -> **US (non-establishment) / South Africa (socio-economic rights)**; *amendment & unamendability* -> **Germany (Art 79(3)) / South Africa / Japan (rigid + referendum)**; *secularism* -> **US / France**; *direct democracy* -> **Switzerland**. ANALYSIS: Build the spine on the **rich** comparators (UK, US, France) and use the **thin** ones (Japan, Switzerland) only as single-line reinforcements.

### 16.6 Borrowing versus adaptation - why a transplant behaves differently in India

- ANALYSIS: **The reusable principle (deploy in every transplant-critique):** a borrowed feature is filtered through India's (1) **written, rigid, supreme** Constitution and **judicial review/basic structure**; (2) **party system** (one-dominant, coalition, regionalised by turns); (3) **holding-together, strong-Union federalism**; (4) **deep social cleavages and a transformative purpose**; (5) **conventions overlaid on codification**; and (6) **state-capacity/implementation** limits. The output is **adaptation, hybridisation or functional substitution - never replication**.
- MEMORY: **Answer line:** "India imported the *mechanism* but re-tuned it to a written, federal, transformative order, so the same institution performs a different constitutional job." (This is the analytical claim section 12 lists as *examples*; here it is the *rule* you apply to an unfamiliar feature.)

### 16.7 Criticism and limits of comparison

- ANALYSIS: **False equivalence:** shared labels ("President", "Senate", "secular", "federation") hide different functions - the commonest way a comparative answer goes wrong.
- ANALYSIS: **Source ≠ operation:** identifying ancestry (UK, US, Canada...) explains origin, not present working; over-stating borrowing flattens India's synthesis.
- ANALYSIS: **Context-stripping:** transplanting a foreign fix without its founding conditions, party system and capacity ignores why it worked *there*.
- ANALYSIS: **Selective idealisation:** comparing India's real practice with a foreign system's textbook ideal (or vice-versa) is not a fair comparison - compare like with like (text with text, practice with practice).
- ANALYSIS: **Convergence illusion:** shared constitutionalism (courts, rights, elections) is easily over-read as similarity; the marks lie in the **structural divergence** beneath the shared vocabulary.

### 16.8 Verdict scaffolds for comparative demands

- **Feature-comparison verdict:** "The systems converge on constitutionalism and courts but diverge on where power is fused or separated; that single difference - fusion vs separation - cascades into their contrasting logics of accountability and stability."
- **Lesson-drawing verdict:** "What travels is the *principle* - principled secular engagement, broad rights access, a basic-structure floor - not the *mechanism*, because founding history and party incentives resist mechanical transplant."
- **Transplant-critique verdict:** "India borrowed the institution and re-purposed it; judged by fit rather than by fidelity to the source, the adaptation, not the copy, is the achievement."
- **Evaluation verdict:** "Judged by purpose rather than symmetry, India's fusion-plus-review design buys accountability and adaptability at some cost to the tidy separation the US prizes - a coherent trade-off, not an incoherence."

### 16.9 Objective-style distinctions (future-Prelims safety)

The generated blocks below route **only Mains GS-II** demands (2018 Q13, 2019 Q5, 2020 Q4, 2022 Q14, 2023 Q4, 2024 Q15) - **no objective/Prelims PYQ is routed here**. These discriminations guard the same facts against an unfamiliar objective question.

| Confusion pair                                        | Correct discrimination                                                                                                                                                |
|-------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| UK "unwritten" vs "uncodified"                        | The UK constitution is <b>uncodified</b> (scattered across statutes, conventions, cases), <b>not</b> wholly unwritten                                                 |
| Parliamentary sovereignty vs constitutional supremacy | <b>UK Parliament is sovereign; India's Constitution is supreme</b> and Parliament's power is limited (basic structure)                                                |
| Residuary powers                                      | <b>Centre</b> in India and <b>Canada</b> ; <b>States</b> in the <b>USA</b> and <b>Australia</b>                                                                       |
| Rajya Sabha vs US/Australian Senate vs Bundesrat      | RS = <b>population-weighted, indirectly elected</b> ; US/Australian Senate = <b>equal-State</b> ; Bundesrat = <b>Land-government delegation</b> - not interchangeable |



| Confusion pair                     | Correct discrimination                                                                                                                                                                                 |
|------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Eternity clause vs basic structure | Germany's <b>Art 79(3)</b> is <b>textual</b> ; India's <b>basic structure</b> is <b>judicially developed</b>                                                                                           |
| Indian vs French secularism        | India = <b>principled engagement/accommodation</b> ; France = <b>laïcité</b> (historically stronger public-state separation, applied through its own legal context)                                    |
| US judicial appointment            | President nominates <b>with Senate advice and consent</b> - not the President alone                                                                                                                    |
| US pardon limits                   | <b>No State offences, no impeachment, no future acts</b>                                                                                                                                               |
| Swiss President                    | <b>Annually rotating</b> head of a collegial Council - <b>not</b> a US-style executive President                                                                                                       |
| "Procedure established by law"     | Borrowed from <b>Japan</b> ; India is <b>not</b> the US "due process" wording (though later expanded by fairness doctrine)                                                                             |
| Judicial-review strength           | <b>UK (Human Rights Act)</b> issues a <b>declaration of incompatibility</b> (weak-form; Parliament stays supreme); <b>India and the USA</b> can <b>strike down</b> unconstitutional laws (strong-form) |
| Collective responsibility          | A <b>UK convention</b> ; in India it is <b>textual - Art 75(3)</b> (Council collectively responsible to the Lok Sabha)                                                                                 |
| Cabinet's legal basis              | India's cabinet system is <b>constitutionally entrenched (Arts 74-75)</b> ; the UK's rests on <b>convention</b> - India codified what Britain leaves unwritten                                         |
| Amendment routes                   | India has <b>multiple routes under Art 368</b> (special majority; some needing ratification by half the States; a few matters by simple majority) - <b>not</b> a single uniform procedure              |
| Impeachment of the President       | India ( <b>Art 61</b> ) = for " <b>violation of the Constitution</b> " by Parliament - do <b>not</b> import the US "high crimes and misdemeanours" ground                                              |
| Judges' removal ground             | India = " <b>proved misbehaviour or incapacity</b> " via parliamentary <b>address</b> (Art 124(4)) - not a US-style criminal impeachment                                                               |

### 16.10 Factual-risk and current-status controls

- ANALYSIS: **Do not invent foreign constitutional text, amendment procedures, court sizes or appointment rules.** State only what sections 1-15 source; if a foreign detail (e.g., a specific term length, bench strength or referendum threshold) is not held here, **argue the design principle instead of quoting a number.**
- FACT: **US Supreme Court size is set by statute, not the Constitution** - never assert a constitutionally fixed number of Justices.
- FACT: Germany's eternity clause is **Art 79(3)**; do not attribute an identical textual clause to India.
- ANALYSIS: Keep **secularism** precise: India ≠ "supports all religions equally as State policy"; USA ≠ "absolute isolation" - avoid both caricatures (the 2019/2024 secularism demands turn on this).
- ANALYSIS: Treat **cohabitation, semi-presidentialism and direct democracy** as **design descriptions**, not events - don't narrate contested foreign political history.
- FACT: **Borrowing identifies ancestry, not present operation** - the master factual-discipline line for this whole topic.
- ANALYSIS: **Attribution is contested at the edges:** DPSPs are conventionally cited from **Ireland** (which itself drew on Spain), and emergency/rights-suspension ideas from the **Weimar/German** and **Government of India Act 1935** lineage - present these as **conventional attributions**, not as the Constitution's own statements (detail lives in Section 12).



- **FACT: India's amendment procedure is sui generis\*** (multiple routes under Art 368) - never describe it as a copy of any single foreign model, and do not quote foreign amendment fractions from memory.

## POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Compare identical constitutional functions in context rather than listing borrowed provisions or treating country labels as self-explanatory.
- **Close distinction:** Keep parliamentary sovereignty, constitutional supremacy, strong-form review, federal second chambers and rights models on their exact axes.
- **Legal/source limit:** Official constitutional sources remain controlling; volatile political officeholders and current party alignments are deliberately not frozen.

## Semantic-completeness ownership and PYQ control

- **Comparative method:** compare the same function through context, institutional rule, practical consequence and transfer limit. Constitutional borrowing identifies a source; it does not prove operational identity.
- **Constitutional form:** India, USA, Germany, South Africa and Japan use codified supreme texts; the UK is partly written and wholly uncoded. Rigid/flexible and evolved/enacted are separate axes, not synonyms.
- **Executive systems:** India/UK use responsible parliamentary government; the USA uses a separately elected fixed presidential executive; France uses a dual semi-presidential system whose balance varies during cohabitation; Switzerland uses a collegial Federal Council.
- **Sovereignty and review:** UK parliamentary sovereignty generally prevents courts from setting aside Westminster Acts. India and the USA operate under constitutional supremacy, while India's amending power is additionally limited by the judicially developed basic-structure doctrine.
- **Federal comparison:** India is a holding-together federation with Union residuary power and unequal Rajya Sabha representation. The US and Australia protect constituent units differently; Germany's Bundesrat represents Land governments; Canada combines federalism with a historically strong centre.
- **Rights models:** India combines enforceable Fundamental Rights and non-justiciable DPSPs. South Africa expressly entrenches enforceable socio-economic rights subject to textual standards. US due process, UK statutory/common-law protection and French laïcité are not mechanically transferable Indian rules.
- **Amendment limits:** Germany's Article 79(3) textual eternity clause and India's Kesavananda Bharati (1973) basic-structure doctrine protect constitutional identity through different legal mechanisms. The US Article V route is not a model of ordinary legislative amendment.
- **Institutional comparisons:** US Senate confirmation, Indian collegium, German constructive no confidence, Swiss referendum and South African Constitutional Court review should be used to evaluate accountable independence, stability and inclusion rather than to prescribe copying.
- **Official-source control, checked 5 September 2026:** current official constitutional/parliamentary sources confirm the UK sovereignty/uncoded distinction, US written separation, Canadian/Australian/German federal structures and South African supremacy and socio-economic rights. Current governments and officeholders are deliberately not frozen.
- **PYQ firewall:** verified comparative-democracy, judicial-system, federalism, secularism and rights demands are routed by their precise principal issue. A comparative answer must state both the constitutional consequence and the transplantation limit.

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Comparison must produce a verdict. **Named evidence:** Minerva Mills (1980) and the comparative basic-structure debate. **Analysis:** A sound answer weighs accountability, liberty, stability, diversity and capacity. **Qualification:** The best foreign principle may require a different Indian mechanism.

## EVIDENCE

Use **Minerva Mills (1980) and the comparative basic-structure debate** only for the proposition it actually establishes; identify whether the support is constitutional text, statute, convention, judgment or political practice.

## PRELIMS TRAP

A feature list is not constitutional analysis.

## MAINS USE

Conclude on functional fit rather than admiration for a foreign model.

## MINI RECAP

trade-off -> fit -> adaptation -> qualified Indian verdict.

# SESSION 16 - RIGHTS REVIEW: INDIA, UNITED STATES, UNITED KINGDOM, CANADA AND SOUTH AFRICA

## VISUAL FIRST

| System         | Rights source                                  | Review/remedy                                             | Built-in qualification                                                |
|----------------|------------------------------------------------|-----------------------------------------------------------|-----------------------------------------------------------------------|
| India          | Part III plus constitutional doctrine          | Strong-form invalidation and writs                        | Express restrictions; proportionality in appropriate rights review    |
| United States  | Bill of Rights and Fourteenth Amendment        | Strong-form judicial review                               | Due process and equal-protection doctrine                             |
| United Kingdom | Common law, statutes and Human Rights Act 1998 | Compatible interpretation; declaration of incompatibility | Parliament retains legal authority to change the law                  |
| Canada         | Charter of Rights and Freedoms                 | Judicial invalidation under constitutional supremacy      | Section 1 reasonable limits; section 33 override for specified rights |
| South Africa   | Transformative Bill of Rights                  | Constitutional invalidity and remedial orders             | Section 36 general limitation clause                                  |

*The table compares the legal route from right to remedy; it does not rank countries by moral worth.*

## DEFINITION / WHAT THIS IS CALLED

**Rights-review design** is the combination of written or statutory rights, the test for limiting them, the court's remedial power and the legislature's response space.

## ANSWER-GRABBING LINE

Rights protection is institutional architecture: the decisive question is not only what the right says, but who may limit it, by what test and with what remedy.

## MUST-WRITE KEYWORDS

strong-form review · dialogic review · due process · procedure established by law · proportionality · limitation clause · notwithstanding clause

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** India and Canada both constitutionalise rights, but Canada expressly combines section 1 limits with a bounded section 33 legislative override. **Named evidence:** Article 21 as read in *Maneka Gandhi* and *K. S. Puttaswamy* may attract fairness and proportionality analysis, whereas Canada's Charter text supplies its own limitation and override architecture. **Analysis:** the comparison shows that judicial review and legislative response can be calibrated rather than treated as an all-or-nothing choice. **Qualification:** section 33 does not apply to every Charter right and should not be described as ordinary parliamentary sovereignty.

## EVIDENCE

- *K. S. Puttaswamy v Union of India* (2017) recognised privacy as a fundamental right and articulated legality, legitimate aim, proportionality and safeguards.
- Under the Human Rights Act, a declaration of incompatibility does not itself invalidate Westminster legislation.
- *Government of the Republic of South Africa v Grootboom* (2000) illustrates reasonableness review of socio-economic obligations; it is not a guarantee of an immediately supplied individual house.

## PRELIMS TRAP

Canada's notwithstanding clause is a constitutionally bounded override, not a declaration that all rights are permanently subject to legislative supremacy.

## MAINS USE

Use this session to compare the complete rights-remedy chain and to distinguish textual socio-economic rights from Indian DPSP-led transformation.

## MINI RECAP

right text -> limitation test -> reviewing institution -> remedy -> legislative response

# SESSION 17 - JUDICIAL APPOINTMENT, TENURE AND REMOVAL

## VISUAL FIRST

INDIA: President formally appoints -> collegium has decisive recommendatory role  
-> retirement age -> parliamentary address for proved misbehaviour/incapacity  
USA: President nominates -> Senate advice and consent -> good-behaviour tenure  
-> House impeachment + Senate conviction for removal  
UK: statutory Judicial Appointments Commission route -> formal appointment  
-> post-2005 institutional separation; removal safeguards vary by judicial office  
SA: Judicial Service Commission participation -> President appoints under Constitution  
-> removal requires JSC finding plus National Assembly support

## DEFINITION / WHAT THIS IS CALLED

**Accountable judicial independence** means insulating adjudication from partisan retaliation while making selection standards, reasons, diversity and institutional responsibility visible.

## ANSWER-GRABBING LINE

Appointment design cannot be judged apart from tenure and removal: independence is produced by the whole career architecture, not by the selector alone.

## MUST-WRITE KEYWORDS

collegium · NJAC judgment · advice and consent · JAC · JSC · good behaviour · proved misbehaviour or incapacity

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** India's collegium and the US confirmation process protect independence through opposite institutional strategies. **Named evidence:** the NJAC judgment (2015) preserved judicial primacy, while the US Constitution divides nomination and confirmation between President and Senate. **Analysis:** one model risks opacity and diffuse responsibility; the other risks visible partisan capture. **Qualification:** the UK JAC and South African JSC demonstrate additional statutory or plural-participation models, but neither can be copied without its surrounding legal culture.

## EVIDENCE

- Article 124(4) uses the ground of proved misbehaviour or incapacity and requires a parliamentary address; it is not the Indian President's personal dismissal power.
- The Constitutional Reform Act 2005 created the UK Supreme Court and statutory appointments architecture.
- South Africa's JSC combines professional, political and institutional representation under its constitutional design.

## PRELIMS TRAP

Do not call Indian judicial removal a US-style criminal impeachment, and do not say the President alone chooses US Supreme Court Justices.

## MAINS USE

Evaluate reform through criteria, recorded reasons, timelines and diversity data while retaining decisional independence.

## MINI RECAP

**selection + tenure + removal + transparency + political context = appointment-system effect**

# SESSION 18 - AMENDMENT DESIGN: INDIA, UNITED STATES, UNITED KINGDOM, SOUTH AFRICA AND CANADA

## VISUAL FIRST

| Country        | Main design                                                                                                   | Federal/territorial participation                                | Identity protection                                       |
|----------------|---------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------|-----------------------------------------------------------|
| India          | simple-majority changes outside Article 368; special majority; specified matters plus half-State ratification | State ratification for listed federal matters                    | judicially developed basic structure                      |
| United States  | Article V proposal and three-fourths State ratification routes                                                | States are indispensable                                         | equal Senate suffrage receives special textual protection |
| United Kingdom | constitutional change commonly through ordinary Acts plus conventions and political constraints               | devolution alters politics, not orthodox Westminster sovereignty | no single entrenched amendment code                       |
| South Africa   | differentiated thresholds for founding values, Bill of Rights and other provisions                            | National Council of Provinces participates where required        | higher thresholds track constitutional importance         |
| Canada         | Part V contains several formulae, including general, unanimity, bilateral and unilateral routes               | required provincial consent varies by subject                    | subject-specific formula, not one universal threshold     |

## DEFINITION / WHAT THIS IS CALLED

**Amendment rigidity** is multidimensional: who may propose, what majority is needed, whether constituent units participate, whether a referendum is required and whether substance is protected.

## ANSWER-GRABBING LINE

A constitution is not simply rigid or flexible; it distributes rigidity across subjects to balance adaptation, federal consent and constitutional identity.

## MUST-WRITE KEYWORDS

**Article 368 · basic structure · Article V · differentiated thresholds · Part V formulae · constituent power**

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** India's amendment scheme is graded rather than uniformly rigid. **Named evidence:** Article 368 requires a special majority and, for specified federal provisions, ratification by at least half the States; *Kesavananda Bharati* adds a substantive basic-structure limit. **Analysis:** this combines democratic change with federal consent and identity protection more flexibly than US Article V. **Qualification:** the UK, South Africa and Canada show different calibrations, so no single foreign threshold supplies a universal reform model.

## EVIDENCE

- *Minerva Mills v Union of India* (1980) treated limited amending power and harmony between Parts III and IV as basic-structure concerns.
- Canada's Part V must be named formula by formula; saying "Canada requires all provinces for amendment" is false.
- South Africa's section 74 differentiates thresholds rather than using one amendment rule.

## PRELIMS TRAP

Do not treat every Indian constitutional change as an Article 368 amendment or every Canadian amendment as requiring unanimity.

## MAINS USE

Use a gate-based comparison: proposal, majority, federal consent, review and substantive limit.

## MINI RECAP

changeability is allocated, not merely labelled

# SESSION 19 - EMERGENCY CONSTITUTIONALISM: INDIA, WEIMAR, UNITED STATES AND FRANCE

## VISUAL FIRST

### EXCEPTIONAL THREAT

- |
  - +-- India: Arts 352/356/360 -> parliamentary control + judicial review
    - | -> 44th Amendment safeguards; Bommai controls Art 356
  - +-- Weimar: Article 48 experience -> warning about normalised decree power
  - +-- USA: Constitution + statutes disperse emergency authority
    - | -> Youngstown framework rejects inherent unlimited power
  - `-- France: Fifth Republic Article 16 -> exceptional presidential powers
    - > constitutional conditions and later review safeguards

## DEFINITION / WHAT THIS IS CALLED

**Emergency constitutionalism** is the legal design for temporary exceptional power while preserving supervision, rights baselines and a return to ordinary government.

## ANSWER-GRABBING LINE

The constitutional danger is not emergency power alone but emergency power without a credible exit, reviewer or non-derogable democratic floor.

## MUST-WRITE KEYWORDS

trigger · proclamation · legislative approval · duration · derogation · federal effect · judicial review · anti-normalisation

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** India's post-1975 emergency design is best evaluated through safeguards rather than analogy by label. **Named evidence:** the Forty-fourth Amendment tightened Article 352, and *S. R. Bommai* made Article 356 proclamations judicially reviewable. **Analysis:** Weimar Article 48 supplies a historical warning, while *Youngstown Sheet & Tube Co. v Sawyer* (1952) shows US judicial control of executive claims outside a single Indian-style emergency code. **Qualification:** France's Article 16 and US statutory emergencies have distinct triggers and institutions; neither is an Indian provision in foreign dress.

## EVIDENCE

- The Weimar experience should be used as a bounded institutional warning, not as a claim that every emergency inevitably ends democracy.
- In *Youngstown*, the US Supreme Court rejected President Truman's seizure of steel mills; Justice Jackson's concurrence provides a power-authorisation framework.
- French Article 16 is exceptional-power design within the Fifth Republic, not a routine power to suspend constitutional government.

## PRELIMS TRAP

Do not state that the US has no emergency law merely because it lacks India's three-part constitutional code.

## MAINS USE

Compare trigger, approval, duration, rights, federal consequences, judicial review and termination.

## MINI RECAP

exception -> supervision -> temporal limit -> rights floor -> return to normalcy

# SESSION 20 - CONSTITUTIONAL IDENTITY, CONVENTIONS AND JUDICIAL DIALOGUE

## VISUAL FIRST

### CONSTITUTIONAL MEANING

```
+-- TEXT: enacted constitutional language
+-- STATUTE: implementing and constitutional legislation
+-- CONVENTION: politically binding practice, often non-justiciable as such
+-- JUDGMENT: authoritative interpretation within jurisdiction
+-- PRACTICE: operation shaped by parties, institutions and social conflict
  |
  v
COMPARATIVE CITATION -> persuasive reason only
  |
  v
CONTEXT TEST -> text, history, structure, rights and institutional fit
```

## DEFINITION / WHAT THIS IS CALLED

**Constitutional identity** names the foundational commitments through which a constitutional order understands its continuity; **judicial dialogue** is the reasoned, non-binding use of comparative law across jurisdictions.

## ANSWER-GRABBING LINE

Comparative constitutional law is persuasive conversation, not a chain of command: foreign reasons travel only after passing through Indian text, structure and basic commitments.

## MUST-WRITE KEYWORDS

**constitutional identity · transformative constitutionalism · convention · persuasive authority · judicial borrowing · contextual fit**

## WRITE THE ANALYTICAL PARAGRAPH

**Claim:** Indian courts may learn from foreign judgments without treating them as binding. **Named evidence:** *Marbury v Madison* illuminates judicial review, *Miller* concerns UK constitutional limits, *Grootboom* and *S. v Makwanyane* illuminate South African transformative adjudication, while *K. S. Puttaswamy* builds an Indian proportionality analysis. **Analysis:** citation can widen reasons and reveal alternatives. **Qualification:** Article 141 binds through Indian Supreme Court law; foreign decisions remain persuasive and must fit India's text, history and institutional competence.

## EVIDENCE

- *Kesavananda Bharati* and *Minerva Mills* protect Indian constitutional identity through the basic-structure doctrine.
- Transformative constitutionalism links rights, dignity and institutional change but does not authorise courts to ignore separation of powers.

- Conventions regulate responsible government in the UK; India constitutionalises many Westminster rules while still relying on conventions in practice.

### PRELIMS TRAP

Foreign precedents do not bind Indian courts, and a convention is not automatically enforceable constitutional text.

### MAINS USE

Use comparative judgments as bounded evidence after stating the Indian constitutional anchor.

### MINI RECAP

**persuasive comparison + Indian anchor + institutional competence + contextual limit**

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### ASCII MASTER FLOW DIAGRAM

PANEL 01/12 - METHOD AND CATEGORY FIREWALL

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+-----+
| - Compare one public function through source, selection, tenure, removal, powers and
| accountability.
| - Then test political context, actual practice, constitutional consequence and transfer limit.
|
| - Keep text, statute, convention, judgment and practice distinct.
|
| - Codified/uncodified, rigid/flexible and supreme/sovereign are separate axes.
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PANEL 02/12 - EXECUTIVE DESIGN: INDIA, UK AND USA

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| - India/UK: dual executive; cabinet survives on lower-house confidence; fusion with
| responsibility.
| - USA: President combines head of State/government; separately grounded fixed tenure.
|
| - US President cannot dissolve Congress; Congress cannot remove by ordinary no-confidence.
|
| - Compare veto, confidence, dissolution, impeachment/removal and deadlock as different mechanisms.
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PANEL 03/12 - FEDERAL ALLOCATION AND SHARED RULE

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| - India: Union/State/Concurrent Lists; Union residue; integrated judiciary; single citizenship.
|
| - USA/Australia: residue broadly with States; equal-State Senates; constituent units strongly
| protected.
| - Canada: federal residue and historically strong centre; appointed regional Senate.
|
| - Rajya Sabha is unequal and indirectly elected; Bundesrat represents Land governments.
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PANEL 04/12 - FEDERAL FINANCE, EMERGENCY AND ASYMMETRY

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| - Real self-rule depends on revenue assignment, transfers, borrowing and intergovernmental
| institutions.
| - India: Finance Commission, grants and GST Council operate beside legislative allocation.
|
| - Articles 352/356/360 centralise differently; Bommai subjects Article 356 to review.
|
| - Asymmetry can integrate diversity; centralising features do not erase the federal structure.
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PANEL 05/12 - RIGHTS AND LIMITATION MODELS

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| - India: Part III + writs + strong-form review; Maneka fairness; Puttaswamy proportionality.
|
| - USA: due process/equal protection; strong-form constitutional review.
|
| - UK HRA: compatible interpretation + declaration of incompatibility; Act remains valid.
|
| - Canada: section 1 limits + bounded section 33 override; South Africa: section 36 limitations.
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#### PANEL 06/12 - TRANSFORMATIVE CONSTITUTIONALISM

- +-----+
- | - South Africa textually entrenches socio-economic rights; Grootboom uses reasonableness review.
- |
- | - India combines enforceable Fundamental Rights, DPSPs, legislation and expanded Article 21.
- |
- | - Makwanyane is persuasive South African rights reasoning, not binding Indian law.
- |
- | - Transformation remains bounded by text, remedy and institutional competence.
- |

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#### PANEL 07/12 - COURTS, APPOINTMENTS AND REMOVAL

- +-----+
- | - India: collegium through Judges Cases; NJAC invalidated in 2015; retirement age; Art 124(4) removal.
- |
- | - USA: presidential nomination + Senate advice and consent; good-behaviour tenure; impeachment route.
- |
- | - UK: statutory JAC architecture after Constitutional Reform Act 2005.
- |
- | - South Africa: JSC participation; appointment/removal combine plural institutions.
- |

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#### PANEL 08/12 - AMENDMENT DESIGN

- +-----+
- | - India: multiple routes; Art 368 special majority; half-State ratification for specified matters.
- |
- | - Kesavananda + Minerva Mills: limited amending power/basic structure.
- |
- | - USA Article V: high proposal and three-fourths State ratification thresholds; no presidential veto.
- |
- | - South Africa section 74 and Canada Part V use differentiated, subject-sensitive formulae.
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#### PANEL 09/12 - EMERGENCY COMPARISON

- +-----+
- | - India: compare trigger, approval, duration, rights, federal effect, review and termination.
- |
- | - Weimar Article 48: bounded warning against normalised decree power, not identical Indian text.
- |
- | - USA: dispersed constitutional/statutory authority; Youngstown limits unsupported executive action.
- |
- | - France Article 16: exceptional Fifth Republic power under its own constitutional conditions.
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#### PANEL 10/12 - BORROWINGS AND ADAPTATION

- +-----+
- | - UK: cabinet/rule of law; USA: FR/review/impeachment; Ireland: DPSP/nominations.
- |
- | - Canada: federation/residue/Governor appointment; Australia: Concurrent List/joint sitting/trade.
- |
- | - Germany: emergency ideas; USSR: duties/justice ideals; South Africa: amendment/RS election.
- |
- | - Japan: procedure established by law; every source was re-tuned to Indian purposes.
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- **D:** Statutes are enacted law, whereas conventions are political norms whose legal treatment varies.

**Question-specific trap:** The trap is assigning the legal force of one source category to another.

### MCQ 3. Responsible government

With reference to India and the United Kingdom, which feature most directly expresses responsible government?

A. The head of State personally directs day-to-day cabinet policy. B. The executive holds a fixed term unaffected by the lower House. C. The ministry remains in office while it retains the confidence of the popularly responsible chamber. D. Courts select the Prime Minister after every general election.

**Answer: C.**

**Option-by-option explanation:**

- **A:** In both systems the constitutional head ordinarily does not personally govern against responsible advice.
- **B:** A confidence-based cabinet has politically variable tenure, unlike a presidential fixed term.
- **C:** Correct. Collective responsibility connects executive survival to lower-house confidence.
- **D:** Government formation is political-constitutional, not a routine judicial appointment function.

**Question-specific trap:** The trap is confusing a ceremonial head of State with the politically responsible government.

### MCQ 4. Separation and dissolution

Which proposition is accurate regarding the United States presidential system?

A. The President may dissolve Congress to resolve legislative deadlock. B. Congress may remove the President through an ordinary no-confidence vote. C. Cabinet secretaries must simultaneously hold seats in Congress. D. The President and Congress possess separately grounded tenure, so deadlock is managed through checks rather than dissolution.

**Answer: D.**

**Option-by-option explanation:**

- **A:** The US President has no power to dissolve Congress; dissolution belongs to parliamentary logic.
- **B:** Presidential removal uses impeachment and conviction, not loss of legislative confidence.
- **C:** The Incompatibility Clause separates congressional membership from executive office.
- **D:** Correct. Separate mandates create stability but also veto points and possible deadlock.

**Question-specific trap:** The trap is importing a Westminster deadlock remedy into a presidential constitution.

### MCQ 5. Head of State and government

Which comparison of India, the United Kingdom and the United States is most accurate?

A. India and the UK separate a constitutional head of State from a confidence-dependent head of government; the US President combines both roles. B. All three systems vest personal executive discretion in the head of State to the same extent. C. Only the United States has a politically accountable executive. D. The Indian President may independently dismiss a Prime Minister who retains a Lok Sabha majority.

**Answer: A.**

**Option-by-option explanation:**

- **A:** Correct. The shared parliamentary dual executive contrasts with the US single presidential executive.
- **B:** Formal vesting and practical authority differ sharply; ministerial advice is central in India and the UK.
- **C:** Parliamentary collective responsibility is a direct form of political accountability.
- **D:** A majority-supported Prime Minister cannot be dismissed merely on the President's personal preference.

**Question-specific trap:** The trap is equating formal executive vesting with independent governing authority.

### MCQ 6. Veto, confidence and deadlock

Which institution-mechanism pairing is constitutionally sound?

A. India - presidential veto permanently overrides a repassed ordinary Bill. B. United Kingdom - government defeat on confidence may require resignation or an election route under governing law and convention. C. United States - impeachment is the ordinary device for resolving policy disagreement with Congress. D. India - dissolution converts the President into an independently elected political executive.

**Answer: B.**

**Option-by-option explanation:**

- **A:** An Indian presidential return of an ordinary Bill may be overcome by parliamentary repassage; it is not a US-style final veto.
- **B:** Correct. Confidence and government formation operate through law and convention in parliamentary government.
- **C:** Impeachment addresses constitutionally grave misconduct, not ordinary policy deadlock.
- **D:** Dissolution does not alter the President's parliamentary constitutional role.

**Question-specific trap:** The trap is treating veto, no-confidence, impeachment and dissolution as interchangeable removal devices.

### MCQ 7. India's federal description

Which formulation best describes India's territorial constitution?

A. A unitary State because Parliament may alter State boundaries. B. A confederation because States created an indissoluble compact. C. A federation or Union with constitutionally divided powers and significant centralising features. D. A quasi-federal system in which federal rules have no binding legal status.

**Answer: C.**

**Option-by-option explanation:**

- **A:** Boundary alteration is centralising, but it does not erase the Seventh Schedule or constitutional federal adjudication.
- **B:** India was not formed by a revocable treaty among sovereign States.
- **C:** Correct. This formulation recognises both federal structure and Union-weighted design without sloganising.
- **D:** The quasi-federal label is too blunt when used to deny operative federalism.

**Question-specific trap:** The trap is forcing India into a unitary/federal binary instead of identifying the actual allocation.

### MCQ 8. Residuary powers

Which set correctly states the broad residuary-power allocation?

A. India-States; United States-Congress; Canada-provinces; Australia-Commonwealth. B. India-Union; United States-President; Canada-courts; Australia-Senate. C. India-Union; United States-States or people; Canada-federal Parliament; Australia-States. D. All federations reserve residuary power to constituent units.

**Answer: D.**

**Option-by-option explanation:**

- **A:** Every pairing is reversed or constitutionally misplaced.
- **B:** Presidents, courts and upper chambers are not the general residuary repositories named here.
- **C:** Correct. The distribution demonstrates why federalism cannot be inferred from one universal model.
- **D:** Canada and India are direct counterexamples to the claimed universal rule.

**Question-specific trap:** The trap is assuming coming-together and holding-together federations allocate residue identically.

### MCQ 9. Territorial second chambers

Which comparison is accurate?

A. Rajya Sabha uses equal State representation like the US and Australian Senates. B. The Canadian Senate consists of instructed provincial-government delegations. C. The German Bundesrat is directly elected on one-person-one-vote principles. D. Rajya Sabha is population-weighted and indirectly elected, while the Bundesrat represents Land governments.

**Answer: A.**

**Option-by-option explanation:**

- **A:** Indian States have unequal Rajya Sabha representation; US and Australian States have equality within their Senates.
- **B:** Canadian senators are appointed within a regional allocation; they are not provincial cabinet delegates.
- **C:** Bundesrat votes are cast by Land governments, not by a separately elected chamber.
- **D:** Correct. Selection and representational principle distinguish the institutions.

**Question-specific trap:** The trap is using the generic label upper house to erase who is represented.

### MCQ 10. Fiscal federalism

Which proposition best captures fiscal federalism in comparative design?

A. Legislative competence, revenue assignment, transfers and borrowing rules jointly shape real self-rule. B. A written division of legislative subjects makes fiscal transfers constitutionally irrelevant. C. Equal upper-house seats guarantee equal fiscal capacity among units. D. Residuary legislative power alone determines every intergovernmental fiscal outcome.

**Answer: B.**

**Option-by-option explanation:**

- **A:** Correct. Formal powers require revenue capacity and transfer arrangements to become operational autonomy.
- **B:** Vertical and horizontal imbalances persist despite enumerated legislative authority.
- **C:** Representation cannot equalise tax bases, expenditure needs or transfer dependence.
- **D:** Fiscal outcomes also depend on tax assignment, grants, institutions and political bargaining.

**Question-specific trap:** The trap is measuring federal autonomy only through legislative lists.

### MCQ 11. Asymmetry

Which is the most defensible understanding of constitutional asymmetry?

A. It is necessarily temporary discrimination that contradicts federalism. B. It can allocate differentiated autonomy or representation to manage distinct territorial conditions within a common constitution. C. It means every constituent unit possesses a unilateral right to secede. D. It exists only in India and has no comparative relevance.

**Answer: C.**

**Option-by-option explanation:**

- **A:** Asymmetry can be a durable constitutional accommodation rather than a defect.
- **B:** Correct. Differentiation may support integration while remaining bounded by constitutional equality and structure.
- **C:** Autonomy arrangements do not ordinarily imply a secession right.
- **D:** Canada and other multinational or territorially diverse orders also use differentiated arrangements.

**Question-specific trap:** The trap is confusing unequal constitutional treatment with unconstitutional arbitrariness.

### MCQ 12. Emergency and federal balance

Which statement is correct about emergency federalism in India?

A. Article 356 is entirely beyond judicial review because it concerns political satisfaction. B. Every emergency automatically abolishes State governments. C. Emergency provisions can centralise authority, but their triggers, approvals and effects differ and remain constitutionally reviewable. D. Financial Emergency has been repeatedly proclaimed since 1950.

**Answer: D.**

**Option-by-option explanation:**

- **A:** S. R. Bommai confirms judicial review of Article 356 proclamations.
- **B:** Articles 352, 356 and 360 create different legal regimes; none supports this universal claim.
- **C:** Correct. Comparison must disaggregate each regime and its safeguards.
- **D:** No Financial Emergency has been proclaimed; the option invents practice.

**Question-specific trap:** The trap is treating three distinct Indian emergency provisions as one automatic consequence.

### MCQ 13. Due process and Article 21

Which statement best describes the India-US comparison?

A. India's text says procedure established by law, but Maneka Gandhi requires procedure to be just, fair and reasonable. B. India amended Article 21 to replace its text with the US phrase due process of law. C. US due process is a non-justiciable directive principle. D. Procedure established by law prevents any review of the quality of legal procedure.

**Answer: A.**

**Option-by-option explanation:**

- **A:** Correct. Indian doctrine deepened fairness without rewriting the constitutional phrase.
- **B:** No such textual replacement occurred; doctrinal development is not formal amendment.
- **C:** Due process is constitutional and judicially enforceable in the United States.
- **D:** Maneka Gandhi rejects a merely formal reading of procedure.

**Question-specific trap:** The trap is converting doctrinal convergence into a false claim of textual identity.

### MCQ 14. Human Rights Act remedy

Under the United Kingdom's Human Rights Act framework, a higher court's declaration of incompatibility:

A. Automatically voids the Act from the date of enactment. B. Signals incompatibility but does not itself invalidate the primary legislation. C. Converts the UK Supreme Court into a sovereign constitutional legislature. D. Binds Indian courts as foreign constitutional precedent.

**Answer: B.**

**Option-by-option explanation:**

- **A:** The declaration leaves the Act legally operative unless changed through the political process.
- **B:** Correct. It exemplifies dialogic or weak-form review within parliamentary sovereignty.
- **C:** Courts interpret and declare; they do not acquire Westminster's legislative authority.
- **D:** Foreign decisions and statutes may persuade but do not bind India.

**Question-specific trap:** The trap is assuming every rights remedy has Indian-style invalidating force.

### MCQ 15. Canada's Charter override

Which statement about section 33 of the Canadian Charter is accurate?

A. It permanently excludes the entire Constitution from judicial review. B. It permits courts to suspend Parliament whenever a right is limited. C. It is identical to the UK doctrine of unlimited parliamentary sovereignty. D. It allows an express, time-limited legislative override of specified Charter rights, subject to constitutional conditions.

**Answer: C.**

**Option-by-option explanation:**

- **A:** The override is bounded by subject, form and renewal; constitutional review continues elsewhere.
- **B:** Section 33 is a legislative instrument, not a judicial suspension power.
- **C:** Canada remains constitutionally supreme; section 33 is an entrenched exception mechanism.
- **D:** Correct. Its limited scope prevents treating it as a general cancellation of rights.

**Question-specific trap:** The trap is expanding a specified override into total legislative supremacy.

### MCQ 16. South African socio-economic rights

Which proposition is most accurate?

A. South Africa expressly entrenches justiciable socio-economic rights reviewed through constitutional standards. B. Grootboom held that every claimant must immediately receive a house from a court. C. India's DPSPs and South Africa's Bill of Rights have identical justiciability. D. Socio-economic rights eliminate resource and reasonableness analysis.

**Answer: D.**

**Option-by-option explanation:**

- **A:** Correct. Textual rights to housing, health care and related interests operate with duties and limitation analysis.
- **B:** Grootboom focused on the reasonableness of the State programme, especially provision for desperate need.
- **C:** Indian DPSPs are non-justiciable as such, though they inform legislation and rights interpretation.
- **D:** Courts still assess progressive realisation, reasonableness and available resources where the text so provides.

**Question-specific trap:** The trap is equating justiciability with an unconditional individual entitlement to an immediate good.

### MCQ 17. Proportionality

In K. S. Puttaswamy, proportionality is best understood as requiring:

A. Any executive preference to prevail once national security is invoked. B. Only a formally enacted law, with no inquiry into aim or means. C. Legality, a legitimate aim, a rational and necessary relationship, and safeguards against disproportionate intrusion. D. Automatic adoption of every foreign privacy judgment.

**Answer: A.**

**Option-by-option explanation:**

- **A:** Security claims remain subject to constitutional justification and institutional safeguards.
- **B:** Legality is necessary but not the complete proportionality inquiry.
- **C:** Correct. The test disciplines both purpose and means in rights limitation.
- **D:** Comparative decisions may inform reasons but cannot replace Indian constitutional analysis.

**Question-specific trap:** The trap is reducing proportionality either to mere legality or to free-floating judicial preference.

### MCQ 18. Comparative precedent

What is the proper Indian use of Marbury, Miller, Grootboom or Makwanyane?

A. Treat each as binding under Article 141. B. Apply them only when the foreign constitution uses identical words. C. Ignore them because comparative reasoning is constitutionally forbidden. D. Use their reasoning persuasively after identifying the Indian text, structure and contextual fit.

**Answer: B.**

**Option-by-option explanation:**

- **A:** Article 141 concerns law declared by India's Supreme Court, not foreign courts.
- **B:** Identical wording is neither necessary nor sufficient; institutional context still matters.
- **C:** Indian constitutional adjudication may consider comparative material.
- **D:** Correct. Persuasive dialogue requires an Indian anchor and a stated transplantation limit.

**Question-specific trap:** The trap is choosing between blind adoption and total exclusion instead of bounded persuasion.

### MCQ 19. India and US appointments

Which comparison is constitutionally correct?

A. India's collegium is judicially developed; US Justices are presidentially nominated and require Senate advice and consent. B. India's Constitution expressly lists the Chief Justice and four senior-most judges as a collegium. C. The US Senate plays no role after presidential nomination. D. Public confirmation hearings necessarily eliminate partisan influence.

**Answer: C.**

**Option-by-option explanation:**

- **A:** Correct. The contrast is judicial primacy versus separated political participation.
- **B:** The collegium's present form emerged through the Judges Cases, not express constitutional enumeration.
- **C:** Advice and consent is an indispensable constitutional stage.
- **D:** Visibility may improve accountability while intensifying ideological contestation.

**Question-specific trap:** The trap is confusing formal appointing authority with the decisive selection mechanism.

### MCQ 20. UK JAC and South African JSC

Which statement is accurate?

A. Both bodies are identical elected upper houses that confirm judges. B. The UK JAC is statutory, while South Africa's JSC is constitutionally structured with plural institutional participation. C. The JSC removes judges by its decision alone without any legislative role. D. Neither model addresses independence-accountability trade-offs.

**Answer: D.**

**Option-by-option explanation:**

- **A:** They are appointments institutions, not legislative chambers.
- **B:** Correct. Their source, membership logic and surrounding appointment rules differ.
- **C:** South African removal also requires the constitutionally specified National Assembly support and presidential action.
- **D:** Both seek to structure expertise, legitimacy and independence, though with different risks.

**Question-specific trap:** The trap is importing one commission's legal source and powers into another system.



### MCQ 21. Removal of Indian judges

A Supreme Court judge in India may be removed through:

A. A Prime Ministerial order after loss of political confidence. B. A simple-majority resolution of either House for unpopular judgments. C. A presidential decision based solely on a collegium recommendation. D. A presidential order after an address by each House supported by the constitutionally prescribed special majority on proved misbehaviour or incapacity.

**Answer: A.**

**Option-by-option explanation:**

- **A:** Judicial tenure is not dependent on cabinet confidence.
- **B:** The high threshold protects adjudication from ordinary majoritarian retaliation.
- **C:** The collegium selects judges; it does not possess a unilateral removal power.
- **D:** Correct. Article 124(4) integrates a defined ground, parliamentary threshold and formal removal.

**Question-specific trap:** The trap is calling every difficult removal process impeachment without stating India's exact ground and address procedure.

### MCQ 22. India's amendment routes

Which statement about Indian constitutional amendment is correct?

A. India uses more than one route, and specified Article 368 changes require ratification by at least half the States. B. Every constitutional provision may be amended by simple majority alone. C. State legislatures may initiate an Article 368 amendment Bill. D. Basic structure is an express list printed in Article 368.

**Answer: B.**

**Option-by-option explanation:**

- **A:** Correct. The scheme differentiates simple-majority changes, special-majority amendments and federal ratification.
- **B:** Core constitutional changes require the thresholds specified by Article 368.
- **C:** An Article 368 Bill is introduced in Parliament, though States ratify specified subjects.
- **D:** Basic structure is a judicially developed doctrine identified case by case.

**Question-specific trap:** The trap is searching for one uniform procedure or a closed textual list of basic features.

### MCQ 23. US Article V

Which is a constitutionally accurate feature of the US amendment process?

A. The President proposes and vetoes constitutional amendments. B. Proposal requires constitutionally specified supermajorities, followed by ratification by three-fourths of the States through an authorised mode. C. Congress may amend the Constitution by an ordinary statute confirmed by the Supreme Court. D. A national referendum is mandatory for every amendment.

**Answer: C.**

**Option-by-option explanation:**

- **A:** The President has no formal Article V proposal or veto role.
- **B:** Correct. Article V separates proposal from State ratification and creates high rigidity.
- **C:** Ordinary legislation cannot substitute for constitutional amendment.
- **D:** Article V does not require a national popular referendum.

**Question-specific trap:** The trap is inserting the ordinary legislative process into constituent amendment.

### MCQ 24. Canada Part V

Which statement best describes Canada's constitutional amendment architecture?

A. Every amendment requires unanimous provincial consent. B. Parliament may amend every federal and provincial institution unilaterally. C. Part V contains multiple formulae whose applicable threshold depends on the subject of amendment. D. Canada has no written amendment procedure because it follows UK conventions.

**Answer: D.**

**Option-by-option explanation:**

- **A:** Unanimity applies to specified matters, not all constitutional changes.
- **B:** Unilateral federal and provincial routes are bounded by subject matter.
- **C:** Correct. The general, unanimity, bilateral and unilateral formulae prevent a one-threshold description.
- **D:** The Constitution Act, 1982 entrenched written Part V procedures.

**Question-specific trap:** The trap is replacing a formula-based system with a single remembered fraction.

### MCQ 25. South African amendment

Which proposition is most accurate about South Africa?

A. All constitutional provisions use the same ordinary legislative majority. B. Provincial participation is constitutionally irrelevant to amendment. C. The Constitutional Court may amend the text without legislative action. D. Section 74 differentiates thresholds, with founding values and the Bill of Rights receiving specially calibrated protection.

**Answer: A.**

**Option-by-option explanation:**

- **A:** The Constitution grades thresholds according to the provision affected.
- **B:** The National Council of Provinces participates for constitutionally specified amendments.
- **C:** Judicial interpretation and formal amendment remain distinct functions.
- **D:** Correct. Differentiation balances entrenchment, democracy and territorial participation.

**Question-specific trap:** The trap is assuming a supreme constitution must use one rigidity level for every clause.

### MCQ 26. India and Weimar emergency design

Which comparative use of Weimar Article 48 is defensible?

A. Use it as a bounded warning that repeated decree power without effective controls can normalise exception, while analysing India's own text and safeguards. B. Claim that Article 352 is a word-for-word copy of Article 48. C. Infer that every emergency proclamation necessarily ends constitutional democracy. D. Treat historical experience as legally binding Indian precedent.

**Answer: B.**

**Option-by-option explanation:**

- **A:** Correct. Historical comparison identifies a risk mechanism without erasing institutional differences.
- **B:** India's provisions have multiple sources and their own constitutional architecture.
- **C:** Emergency outcomes depend on safeguards, institutions and political resistance.
- **D:** Foreign constitutional history may illuminate but does not bind Indian law.

**Question-specific trap:** The trap is turning a historical analogy into identity of text or inevitable outcome.

### MCQ 27. Youngstown and US emergency power

Youngstown Sheet & Tube Co. v Sawyer is relevant because it:

A. Created a permanent US equivalent of Article 356. B. Demonstrated judicial limits on presidential action and related executive power to congressional authorisation. C. Held that the President may seize any industry during war without law. D. Bound the Indian President's exercise of Article 352.

**Answer: C.**

**Option-by-option explanation:**

- **A:** The case concerned steel seizure, not federal takeover of a State government.
- **B:** Correct. The majority rejected the seizure, and Jackson's framework links power to congressional support or opposition.
- **C:** The holding rejected, rather than endorsed, inherent seizure power.
- **D:** It is comparative persuasive material, not an Indian constitutional command.

**Question-specific trap:** The trap is remembering emergency context but reversing the limitation imposed by the case.

### MCQ 28. France Article 16

Which statement is safest regarding France's Fifth Republic emergency design?

A. Article 16 is identical to India's Article 356 and concerns dismissal of State governments. B. It gives the French President an ordinary power to dissolve all courts permanently. C. It proves semi-presidential systems lack legislative or judicial safeguards. D. It provides exceptional presidential powers under constitutional conditions and must be compared through trigger, duration, supervision and rights effects.

**Answer: D.**

**Option-by-option explanation:**

- **A:** France is unitary and Article 16 is not an Indian federal-failure mechanism.
- **B:** Exceptional authority does not amount to permanent abolition of courts.
- **C:** Semi-presidential design still contains constitutional institutions and controls.
- **D:** Correct. A safeguard matrix avoids sensational and false equivalence.

**Question-specific trap:** The trap is describing exceptional power without its constitutional conditions and review structure.

### MCQ 29. UK, US and Ireland borrowings

Which source-effect set is conventionally accurate for India?

A. UK-parliamentary cabinet and rule of law; US-Fundamental Rights, judicial review and impeachment; Ireland-DPSPs and nominated Rajya Sabha members. B. UK-Fundamental Rights; US-DPSPs; Ireland-presidential separation. C. UK-written federal supremacy; US-collective ministerial responsibility; Ireland-judicial review. D. All three features operate in India exactly as in their source systems.

**Answer: A.**

**Option-by-option explanation:**

- **A:** Correct. Each source attribution must still be followed by the Indian adaptation.
- **B:** The listed lineages are constitutionally misplaced.
- **C:** These pairings reverse the conventional borrowing map.
- **D:** India changed source mechanisms through republicanism, federalism, review and transformative commitments.

**Question-specific trap:** The trap is either misassigning the source or stopping before the Indian adaptation.

### MCQ 30. Canada and Australia borrowings

Which statement is accurate?

A. India borrowed equal State representation in Rajya Sabha from Australia. B. Canada influenced the strong-centre federation, residuary Union power and appointment of Governors; Australia influenced the Concurrent List, joint sitting and trade provisions. C. Australia supplied India's basic-structure doctrine. D. Canada supplied an elected Governor for every Indian State.

**Answer: B.**

**Option-by-option explanation:**

- **A:** Rajya Sabha representation is unequal and population-linked, unlike Australia's equal-State Senate.
- **B:** Correct. These are conventional source links whose Indian operation remains distinct.
- **C:** Basic structure was judicially developed in India.
- **D:** Indian Governors are appointed by the President, not elected under a Canadian borrowing.

**Question-specific trap:** The trap is importing a donor country's entire federal package instead of the specific influenced feature.

### MCQ 31. Germany, USSR, South Africa and Japan

Which conventional borrowing map is correct?

A. Germany-Fundamental Duties; USSR-procedure established by law; South Africa-emergency; Japan-Rajya Sabha election. B. Germany-DPSPs; USSR-judicial review; South Africa-parliamentary cabinet; Japan-residuary power. C. Germany-emergency-related ideas; former USSR-Fundamental Duties and justice ideals; South Africa-amendment procedure elements and Rajya Sabha election; Japan-procedure established by law. D. Each borrowing retained the donor country's exact doctrinal meaning.

**Answer: C.**

**Option-by-option explanation:**

- **A:** The source-feature pairings are scrambled.
- **B:** None of these is the accepted conventional map.
- **C:** Correct. The list identifies influences, while Indian text and doctrine determine current meaning.
- **D:** Article 21's later fairness doctrine is a clear example of adaptation beyond source wording.

**Question-specific trap:** The trap is memorising a source list without checking whether the Indian effect changed.

### MCQ 32. Identity and judicial dialogue

Which proposition best combines constitutional identity and comparative citation?

A. Constitutional identity permits courts to ignore enacted text whenever a foreign court reaches a desirable result. B. Foreign judgments bind India whenever they concern universal human rights. C. Transformative constitutionalism abolishes institutional competence limits. D. Foreign reasoning may illuminate Indian guarantees, but basic structure, text, history and institutional role control the Indian conclusion.

**Answer: D.**

**Option-by-option explanation:**

- **A:** Identity constrains and interprets power; it does not license text-free adjudication.
- **B:** Persuasive value does not become Article 141 binding force.
- **C:** Transformation remains constitutional and therefore bounded by separation, competence and remedy.
- **D:** Correct. Dialogue is useful only after contextual translation into India's constitutional order.

**Question-specific trap:** The trap is treating comparative openness as legal subordination to foreign courts.

## PYQS AND ANSWER PRACTICE

**Official-key discipline:** UPSC publishes no official descriptive model-answer key. The question wording below is retained from the repository-verified GS-II ledger; each solution is an examiner-oriented model, not an official answer.

### VERIFIED DIRECT PYQ 1 - 2018 GS-II Q13 - 15 marks - 250 words

**Question (exact):** "India and USA are two large democracies. Examine the basic tenets on which the two political systems are based."

**Model answer:** India and the United States share popular sovereignty, written constitutional supremacy, elected government, federalism, bicameralism, enforceable rights and judicial review. Their institutional tenets nevertheless differ.

India has a parliamentary executive: the President is the constitutional head, while the Council of Ministers is collectively responsible to the Lok Sabha. The United States has a presidential executive with a separately elected, fixed-tenure President and institutional separation from Congress.

Indian federalism gives residuary power to the Union, single citizenship, an integrated judiciary and unequal State representation in Rajya Sabha. The US Tenth Amendment reserves undelegated powers to States or the people, each State has equal Senate representation, and federal and State courts coexist.

Both protect rights, but India combines Fundamental Rights with DPSPs, affirmative constitutional commitments and express reasonable restrictions. The US Bill of Rights and Fourteenth Amendment operate through due process and equal protection. Both courts review legislation, while India's amendment power is additionally limited by basic structure.

Thus, the systems share democratic constitutionalism but choose different accountability, stability and federal-representation mechanisms. Similar labels must be compared through powers and consequences, not treated as equivalence.

**Why this earns marks:** It covers common foundations and four institutional contrasts, then links design to consequences.

**How to improve this answer:** Add one exact constitutional provision per country; avoid calling India or the USA purely separated or purely unitary.

**Compression guidance:** Keep the common core, executive, federal, rights and review contrasts, and the qualified synthesis.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 1 - 2018 GS-II Q13 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

#### Detailed examiner-grade model answer:

**Introduction and thesis:** India and the United States share popular sovereignty, written constitutional supremacy, elected government, federalism, bicameralism, enforceable rights and judicial review. Their institutional tenets nevertheless differ.

India has a parliamentary executive: the President is the constitutional head, while the Council of Ministers is collectively responsible to the Lok Sabha. The United States has a presidential executive with a separately elected, fixed-tenure President and institutional separation from Congress.

Indian federalism gives residuary power to the Union, single citizenship, an integrated judiciary and unequal State representation in Rajya Sabha. The US Tenth Amendment reserves undelegated powers to States or the people, each State has equal Senate representation, and federal and State courts coexist.

Both protect rights, but India combines Fundamental Rights with DPSPs, affirmative constitutional commitments and express reasonable restrictions. The US Bill of Rights and Fourteenth Amendment operate through due process and equal protection. Both courts review legislation, while India's amendment power is additionally limited by basic structure.

Thus, the systems share democratic constitutionalism but choose different accountability, stability and federal-representation mechanisms. Similar labels must be compared through powers and consequences, not treated as equivalence.

#### Analytical body:

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 1 - 2018 GS-II Q13 - 15 marks - 250 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "India and USA are two large democracies. Examine the basic tenets on which the two political systems are based." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Why this earns marks: It covers common foundations and four institutional contrasts, then links design to consequences. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** How to improve this answer: Add one exact constitutional provision per country; avoid calling India or the USA purely separated or purely unitary. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Compression guidance: Keep the common core, executive, federal, rights and review contrasts, and the qualified synthesis. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** India and the United States share popular sovereignty, written constitutional supremacy, elected government, federalism, bicameralism, enforceable rights and judicial review. Their institutional tenets nevertheless differ.

India has a parliamentary executive: the President is the constitutional head, while the Council of Ministers is collectively responsible to the Lok Sabha. The United States has a presidential executive with a separately elected, fixed-tenure President and institutional separation from Congress.

Indian federalism gives residuary power to the Union, single citizenship, an integrated judiciary and unequal State representation in Rajya Sabha. The US Tenth Amendment reserves undelegated powers to States or the people, each State has equal Senate representation, and federal and State courts coexist.

Both protect rights, but India combines Fundamental Rights with DPSPs, affirmative constitutional commitments and express reasonable restrictions. The US Bill of Rights and Fourteenth Amendment operate through due process and equal protection. Both courts review legislation, while India's amendment power is additionally limited by basic structure.

Thus, the systems share democratic constitutionalism but choose different accountability, stability and federal-representation mechanisms. Similar labels must be compared through powers and consequences, not treated as equivalence.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for



causation, group variation and legal-outcome limits.

## VERIFIED DIRECT PYQ 2 - 2019 GS-II Q5 - 10 marks - 150 words

**Question (exact):** "What can France learn from the Indian Constitution's approach to secularism?"

**Model answer:** French laicite protects republican public authority through state neutrality and a religion-independent civic sphere. India's Constitution instead combines equal citizenship with religious freedom, denominational rights and principled state engagement for social reform.

France can draw three lessons. First, neutrality should be tested through proportionality so that common rules do not unnecessarily exclude individual believers. Second, minority cultural and educational protection can support integration in a diverse society. Third, state engagement may be legitimate when directed to equality, dignity and reform rather than religious preference.

The transfer cannot be mechanical. French secularism arose from conflict with clerical authority, while India's model addresses deep religious plurality and social hierarchy. India itself also struggles with selective intervention and majoritarian pressure.

The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

**Why this earns marks:** It answers what France can learn, identifies mechanisms and limits transplantation.

**How to improve this answer:** Use Articles 25-30 as Indian anchors; avoid slogans such as equal distance unless their institutional meaning is explained.

**Compression guidance:** Retain laicite, three lessons, historical-context caveat and rights-centred verdict.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 2 - 2019 GS-II Q5 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

### Detailed examiner-grade model answer:

**Introduction and thesis:** French laicite protects republican public authority through state neutrality and a religion-independent civic sphere. India's Constitution instead combines equal citizenship with religious freedom, denominational rights and principled state engagement for social reform.

France can draw three lessons. First, neutrality should be tested through proportionality so that common rules do not unnecessarily exclude individual believers. Second, minority cultural and educational protection can support integration in a diverse society. Third, state engagement may be legitimate when directed to equality, dignity and reform rather than religious preference.

The transfer cannot be mechanical. French secularism arose from conflict with clerical authority, while India's model addresses deep religious plurality and social hierarchy. India itself also struggles with selective intervention and majoritarian pressure.

The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

### Analytical body:

- 1. Claim and named evidence:** VERIFIED DIRECT PYQ 2 - 2019 GS-II Q5 - 10 marks - 150 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Question (exact): "What can France learn from the Indian Constitution's approach to secularism?" **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social

outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Why this earns marks: It answers what France can learn, identifies mechanisms and limits transplantation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** How to improve this answer: Use Articles 25-30 as Indian anchors; avoid slogans such as equal distance unless their institutional meaning is explained. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

**Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** French laicity protects republican public authority through state neutrality and a religion-independent civic sphere. India's Constitution instead combines equal citizenship with religious freedom, denominational rights and principled state engagement for social reform.

France can draw three lessons. First, neutrality should be tested through proportionality so that common rules do not unnecessarily exclude individual believers. Second, minority cultural and educational protection can support integration in a diverse society. Third, state engagement may be legitimate when directed to equality, dignity and reform rather than religious preference.

The transfer cannot be mechanical. French secularism arose from conflict with clerical authority, while India's model addresses deep religious plurality and social hierarchy. India itself also struggles with selective intervention and majoritarian pressure.

The valid lesson is therefore a rights-centred balance: preserve state neutrality while accommodating diversity where accommodation is compatible with liberty, equality and public order.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

### VERIFIED DIRECT PYQ 3 - 2020 GS-II Q4 - 10 marks - 150 words

**Question (exact):** "The judicial systems in India and the UK seem to be converging as well as diverging in recent times. Highlight the key points of convergence and divergence between the two nations in terms of their judicial practices."

**Model answer:** India and the United Kingdom share common-law reasoning, precedent, open justice, adversarial procedure and institutional concern for judicial independence. The UK Supreme Court's separation from the House of Lords and modern appointments machinery also create visible institutional convergence.

Divergence begins with constitutional authority. India's written supreme Constitution permits the Supreme Court and High Courts to invalidate legislation and issue constitutional writs. Under orthodox UK parliamentary sovereignty, courts ordinarily cannot invalidate a Westminster Act; a Human Rights Act declaration of incompatibility does not itself annul it.

India has an integrated national hierarchy and broad public-interest constitutional access. The UK contains distinct legal jurisdictions and relies more heavily on statutory and common-law remedies. Judicial appointments also differ in constitutional source and accountability structure.

Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge.

**Why this earns marks:** It highlights both convergence and divergence and identifies the controlling supremacy distinction.



**How to improve this answer:** Add one appointment or rights-remedy example; do not call the UK Constitution unwritten or the UK Supreme Court a legislative invalidation court.

**Compression guidance:** Use two convergence points, three divergence points and the authority-based conclusion.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 3 - 2020 GS-II Q4 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** India and the United Kingdom share common-law reasoning, precedent, open justice, adversarial procedure and institutional concern for judicial independence. The UK Supreme Court's separation from the House of Lords and modern appointments machinery also create visible institutional convergence.

Divergence begins with constitutional authority. India's written supreme Constitution permits the Supreme Court and High Courts to invalidate legislation and issue constitutional writs. Under orthodox UK parliamentary sovereignty, courts ordinarily cannot invalidate a Westminster Act; a Human Rights Act declaration of incompatibility does not itself annul it.

India has an integrated national hierarchy and broad public-interest constitutional access. The UK contains distinct legal jurisdictions and relies more heavily on statutory and common-law remedies. Judicial appointments also differ in constitutional source and accountability structure.

Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge.

**Analytical body:**

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 3 - 2020 GS-II Q4 - 10 marks - 150 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Why this earns marks: It highlights both convergence and divergence and identifies the controlling supremacy distinction. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** How to improve this answer: Add one appointment or rights-remedy example; do not call the UK Constitution unwritten or the UK Supreme Court a legislative invalidation court. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Compression guidance: Use two convergence points, three divergence points and the authority-based conclusion. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** India and the United Kingdom share common-law reasoning, precedent, open justice, adversarial procedure and institutional concern for judicial independence. The UK Supreme Court's separation from the House of Lords and modern appointments machinery also create visible institutional convergence.

Divergence begins with constitutional authority. India's written supreme Constitution permits the Supreme Court and High Courts to invalidate legislation and issue constitutional writs. Under orthodox UK parliamentary sovereignty, courts ordinarily cannot invalidate a Westminster Act; a Human Rights Act declaration of incompatibility does not itself annul it.

India has an integrated national hierarchy and broad public-interest constitutional access. The UK contains distinct legal jurisdictions and relies more heavily on statutory and common-law remedies. Judicial appointments also differ in constitutional source and accountability structure.

Therefore, professional practices may converge, while the source and remedial force of judicial power continue to diverge.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

### VERIFIED DIRECT PYQ 4 - 2022 GS-II Q14 - 15 marks - 250 words

**Question (exact):** "Critically examine the procedures through which the Presidents of India and France are elected."

**Model answer:** Election procedure reflects the different offices occupied by the two Presidents.

India elects its President indirectly through an electoral college of elected Members of Parliament and elected members of State and specified Union Territory legislative assemblies. Votes are weighted to balance Union-State and population considerations, and the single transferable vote with proportional representation and secret ballot seeks broad federal acceptability. The office ordinarily functions on ministerial advice.

France elects its President by direct universal suffrage. A two-round majority system permits a second ballot between leading candidates if no candidate secures the required first-round majority. Direct election supplies a personal national mandate appropriate to a semi-presidential system in which the President has substantial powers, while the Prime Minister and Government remain responsible to the National Assembly.

India's method promotes federal inclusion and a non-majoritarian constitutional head but is remote from voters and mathematically complex. France's method provides direct legitimacy and majority endorsement but may personalise politics and create dual legitimacy or cohabitation when the parliamentary majority differs.

The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency.

**Why this earns marks:** It accurately explains both procedures and critically evaluates why each fits its office.

**How to improve this answer:** Mention vote-value mechanics only if exact; do not infer comparable powers merely from the shared title President.

**Compression guidance:** Keep both procedures, two advantages, two risks and the office-design verdict.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 4 - 2022 GS-II Q14 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** Election procedure reflects the different offices occupied by the two Presidents.

India elects its President indirectly through an electoral college of elected Members of Parliament and elected members of State and specified Union Territory legislative assemblies. Votes are weighted to balance Union-State and population considerations, and the single transferable vote with proportional representation and secret ballot seeks broad federal acceptability. The office ordinarily functions on ministerial advice.

France elects its President by direct universal suffrage. A two-round majority system permits a second ballot between leading candidates if no candidate secures the required first-round majority. Direct election supplies a personal national mandate appropriate to a semi-presidential system in which the President has substantial powers, while the Prime Minister and Government remain responsible to the National Assembly.

India's method promotes federal inclusion and a non-majoritarian constitutional head but is remote from voters and mathematically complex. France's method provides direct legitimacy and majority endorsement but may personalise politics and create dual legitimacy or cohabitation when the parliamentary majority differs.

The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency.

#### **Analytical body:**

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 4 - 2022 GS-II Q14 - 15 marks - 250 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "Critically examine the procedures through which the Presidents of India and France are elected." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Model answer: Election procedure reflects the different offices occupied by the two Presidents. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Why this earns marks: It accurately explains both procedures and critically evaluates why each fits its office. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Election procedure reflects the different offices occupied by the two Presidents.

India elects its President indirectly through an electoral college of elected Members of Parliament and elected members of State and specified Union Territory legislative assemblies. Votes are weighted to balance Union-State and population considerations, and the single transferable vote with proportional representation and secret ballot seeks broad federal acceptability. The office ordinarily functions on ministerial advice.

France elects its President by direct universal suffrage. A two-round majority system permits a second ballot between leading candidates if no candidate secures the required first-round majority. Direct election supplies a personal national mandate appropriate to a semi-presidential system in which the President has substantial powers, while the Prime Minister and Government remain responsible to the National Assembly.

India's method promotes federal inclusion and a non-majoritarian constitutional head but is remote from voters and mathematically complex. France's method provides direct legitimacy and majority endorsement but may personalise politics and create dual legitimacy or cohabitation when the parliamentary majority differs.

The procedures should not be ranked in isolation. India's indirect federal election fits a parliamentary republic; France's direct two-round election fits a politically active semi-presidential presidency.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

## VERIFIED DIRECT PYQ 5 - 2023 GS-II Q4 - 10 marks - 150 words

**Question (exact):** "Compare and contrast the British and Indian approaches to Parliamentary sovereignty."

**Model answer:** Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs.

The orthodox British doctrine treats Parliament as the supreme law-maker: it may enact or repeal any law, courts ordinarily cannot invalidate a Westminster Act, and one Parliament cannot entrench law against successors. Political constraints, devolution and rights review qualify practice without creating Indian-style constitutional supremacy.

Indian Parliament is constituted and limited by a written supreme Constitution. Federal distribution, Fundamental Rights, bicameral procedures and judicial review bind ordinary legislation. Constitutional amendment under Article 368 is also limited by the basic-structure doctrine.

Thus, Britain centres legal sovereignty in Parliament, whereas India centres it in the Constitution. India borrowed parliamentary government but transformed it through republicanism, federalism, entrenched rights and constitutional adjudication.

**Why this earns marks:** It compares shared parliamentary practice but contrasts the different legal sovereignty foundations.

**How to improve this answer:** Use the Human Rights Act declaration carefully; it does not itself invalidate primary legislation.

**Compression guidance:** Retain commonality, British rule, Indian limits, basic structure and adaptation verdict.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 5 - 2023 GS-II Q4 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

### Detailed examiner-grade model answer:

**Introduction and thesis:** Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs.

The orthodox British doctrine treats Parliament as the supreme law-maker: it may enact or repeal any law, courts ordinarily cannot invalidate a Westminster Act, and one Parliament cannot entrench law against successors. Political constraints, devolution and rights review qualify practice without creating Indian-style constitutional supremacy.

Indian Parliament is constituted and limited by a written supreme Constitution. Federal distribution, Fundamental Rights, bicameral procedures and judicial review bind ordinary legislation. Constitutional amendment under Article 368 is also limited by the basic-structure doctrine.

Thus, Britain centres legal sovereignty in Parliament, whereas India centres it in the Constitution. India borrowed parliamentary government but transformed it through republicanism, federalism, entrenched rights and constitutional adjudication.

### Analytical body:

- 1. Claim and named evidence:** VERIFIED DIRECT PYQ 5 - 2023 GS-II Q4 - 10 marks - 150 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Question (exact): "Compare and contrast the British and Indian approaches to Parliamentary sovereignty." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Model answer: Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Why this earns marks: It compares shared parliamentary practice but contrasts the different legal sovereignty foundations. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** How to improve this answer: Use the Human Rights Act declaration carefully; it does not itself invalidate primary legislation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Both systems developed responsible cabinet government, legislative privilege and executive accountability to the lower House. Their location of ultimate legal authority differs.

The orthodox British doctrine treats Parliament as the supreme law-maker: it may enact or repeal any law, courts ordinarily cannot invalidate a Westminster Act, and one Parliament cannot entrench law against successors. Political constraints, devolution and rights review qualify practice without creating Indian-style constitutional supremacy.

Indian Parliament is constituted and limited by a written supreme Constitution. Federal distribution, Fundamental Rights, bicameral procedures and judicial review bind ordinary legislation. Constitutional amendment under Article 368 is also limited by the basic-structure doctrine.

Thus, Britain centres legal sovereignty in Parliament, whereas India centres it in the Constitution. India borrowed parliamentary government but transformed it through republicanism, federalism, entrenched rights and constitutional adjudication.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

## VERIFIED DIRECT PYQ 6 - 2024 GS-II Q15 - 15 marks - 250 words

**Question (exact):** "Discuss India as a secular state and compare it with the secular principles of the US Constitution."

**Model answer:** India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories.

The US First Amendment prohibits establishment and protects free exercise. Government must not establish religion, and religious exercise receives constitutional protection subject to generally applicable constitutional limits. The separation metaphor is influential but not absolute.

India's secularism arises from the Preamble, equality provisions and Articles 25-30. It protects conscience and practice, permits denominational institutions and minority education, and authorises regulation of secular activities and social reform. The State may engage with religious institutions, but engagement must satisfy equality, dignity, liberty and non-discrimination. Secularism is part of the basic structure under *S. R. S.R. Bommai (1994)*.

Both systems therefore protect freedom and resist state preference. The US places stronger textual emphasis on non-establishment; India combines religious liberty with reform and accommodation in a deeply plural society. Both face disputes over neutrality, exemptions and majoritarian influence.

India is secular not because the State never encounters religion, but because constitutional engagement must preserve equal citizenship. Comparison should avoid caricaturing either model as complete separation or unlimited intervention.

**Why this earns marks:** It supplies textual foundations, shared aims, differences, limits and an Indian basic-structure anchor.

**How to improve this answer:** Add one doctrine or institutional example only if exact; distinguish denominational rights from state preference.



**Compression guidance:** Use common core, US clauses, Indian Articles, reform/accommodation contrast and qualified verdict.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED DIRECT PYQ 6 - 2024 GS-II Q15 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories.

The US First Amendment prohibits establishment and protects free exercise. Government must not establish religion, and religious exercise receives constitutional protection subject to generally applicable constitutional limits. The separation metaphor is influential but not absolute.

India's secularism arises from the Preamble, equality provisions and Articles 25-30. It protects conscience and practice, permits denominational institutions and minority education, and authorises regulation of secular activities and social reform. The State may engage with religious institutions, but engagement must satisfy equality, dignity, liberty and non-discrimination. Secularism is part of the basic structure under *S. R. S.R. Bommai (1994)*.

Both systems therefore protect freedom and resist state preference. The US places stronger textual emphasis on non-establishment; India combines religious liberty with reform and accommodation in a deeply plural society. Both face disputes over neutrality, exemptions and majoritarian influence.

India is secular not because the State never encounters religion, but because constitutional engagement must preserve equal citizenship. Comparison should avoid caricaturing either model as complete separation or unlimited intervention.

**Analytical body:**

1. **Claim and named evidence:** VERIFIED DIRECT PYQ 6 - 2024 GS-II Q15 - 15 marks - 250 words **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "Discuss India as a secular state and compare it with the secular principles of the US Constitution." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Model answer: India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Why this earns marks: It supplies textual foundations, shared aims, differences, limits and an Indian basic-structure anchor. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** How to improve this answer: Add one doctrine or institutional example only if exact; distinguish denominational rights from state preference. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** India and the United States reject an established theocratic state and protect religious liberty, but their constitutional techniques reflect different histories.

The US First Amendment prohibits establishment and protects free exercise. Government must not establish religion, and religious exercise receives constitutional protection subject to generally applicable constitutional limits. The separation metaphor is influential but not absolute.

India's secularism arises from the Preamble, equality provisions and Articles 25-30. It protects conscience and practice, permits denominational institutions and minority education, and authorises regulation of secular activities and social reform. The State may engage with religious institutions, but engagement must satisfy equality, dignity, liberty and non-discrimination. Secularism is part of the basic structure under *S. R. S.R. Bommai (1994)*.

Both systems therefore protect freedom and resist state preference. The US places stronger textual emphasis on non-establishment; India combines religious liberty with reform and accommodation in a deeply plural society. Both face disputes over neutrality, exemptions and majoritarian influence.

India is secular not because the State never encounters religion, but because constitutional engagement must preserve equal citizenship. Comparison should avoid caricaturing either model as complete separation or unlimited intervention.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

### VERIFIED SUPPORTING PYQ 7 - 2025 GS-II Q3 - 10 marks - 150 words

**Question (exact):** "Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both the countries? What are 'preemptive pardons'?"

**Model answer:** Article 72 empowers India's President to grant clemency in court-martial cases, offences concerning Union executive power and death sentences. The President acts on ministerial advice, and the decision is judicially reviewable on limited grounds such as mala fides, arbitrariness or irrelevant considerations.

Article II, section 2 gives the US President clemency power for federal offences, except impeachment. It does not reach State offences and is exercised personally rather than on cabinet advice. Constitutional and political accountability remain despite broad discretion.

A preemptive pardon protects against federal prosecution for already committed conduct before charge or conviction; it cannot license future offences. US practice recognises such pardons. Indian Article 72 is ordinarily framed around conviction and sentence, so the US doctrine should not be mechanically imported.

Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review.

**Why this earns marks:** It answers comparison, limits and the distinct preemptive-pardon limb.

**How to improve this answer:** Avoid the absolute claim that all US pardons are unreviewable or that a preemptive pardon covers future conduct.

**Compression guidance:** Keep constitutional sources, advice, jurisdiction, limits, definition and verdict.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED SUPPORTING PYQ 7 - 2025 GS-II Q3 - 10 marks - 150 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

#### Detailed examiner-grade model answer:

**Introduction and thesis:** Article 72 empowers India's President to grant clemency in court-martial cases, offences concerning Union executive power and death sentences. The President acts on ministerial advice, and the decision is judicially reviewable on limited grounds such as mala fides, arbitrariness or irrelevant considerations.

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Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review.

#### Analytical body:

1. **Claim and named evidence:** VERIFIED SUPPORTING PYQ 7 - 2025 GS-II Q3 - 10 marks - 150 words  
**Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Question (exact): "Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both the countries? What are 'preemptive pardons'?" **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
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**Qualified conclusion:** Article 72 empowers India's President to grant clemency in court-martial cases, offences concerning Union executive power and death sentences. The President acts on ministerial advice, and the decision is judicially reviewable on limited grounds such as mala fides, arbitrariness or irrelevant considerations.

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Both powers temper justice with mercy, but differ in advice, jurisdiction, express limits and review.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.



## VERIFIED SUPPORTING PYQ 8 - 2025 GS-II Q13 - 15 marks - 250 words

**Question (exact):** "Discuss the evolution of collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA."

**Model answer:** India's Constitution formally vests Supreme Court appointments in the President after consultation. The First Judges Case (1981) favoured executive primacy; the Second Judges Case (1993) created judicial primacy through the collegium; the Third Judges Case (1998) expanded the consultative collegium. The NJAC amendment was invalidated in 2015 for violating judicial independence.

India's collegium insulates appointments from direct party control and protects decisional independence. Its disadvantages are opacity, limited published criteria, weak diversity accountability, delay and an unclear responsibility chain.

The United States uses presidential nomination and Senate advice and consent. Public hearings and separated institutional participation create visible democratic accountability and a clear record. Yet partisan polarisation, strategic vacancies and ideological confirmation can make appointments openly political. Life tenure raises the stakes further.

Neither model resolves the independence-accountability tension. India should retain judicial independence while publishing selection criteria, reasons, diversity data and timelines and improving secretariat capacity. The US comparison warns against converting transparency into party capture.

The lesson is accountable independence, not transplantation: appointment design must be evaluated with tenure, political parties, conventions and the wider constitutional structure.

**Why this earns marks:** It traces collegium evolution, critically assesses both systems and derives a context-sensitive reform lesson.

**How to improve this answer:** Name the Judges Cases and NJAC without inventing vote details; distinguish public accountability from partisan control.

**Compression guidance:** Preserve chronology, two merits and defects per system, and accountable-independence reform.

**Demand decoding:** The directive **answer** requires a direct position on "VERIFIED SUPPORTING PYQ 8 - 2025 GS-II Q13 - 15 marks - 250 words", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

### Detailed examiner-grade model answer:

**Introduction and thesis:** India's Constitution formally vests Supreme Court appointments in the President after consultation. The First Judges Case (1981) favoured executive primacy; the Second Judges Case (1993) created judicial primacy through the collegium; the Third Judges Case (1998) expanded the consultative collegium. The NJAC amendment was invalidated in 2015 for violating judicial independence.

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### Analytical body:

1. **Claim and named evidence:** VERIFIED SUPPORTING PYQ 8 - 2025 GS-II Q13 - 15 marks - 250 words

**Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope,

correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** Question (exact): "Discuss the evolution of collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA." **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** The lesson is accountable independence, not transplantation: appointment design must be evaluated with tenure, political parties, conventions and the wider constitutional structure. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
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**Qualified conclusion:** India's Constitution formally vests Supreme Court appointments in the President after consultation. The First Judges Case (1981) favoured executive primacy; the Second Judges Case (1993) created judicial primacy through the collegium; the Third Judges Case (1998) expanded the consultative collegium. The NJAC amendment was invalidated in 2015 for violating judicial independence.

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**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

## ORIGINAL MAINS PRACTICE 1 - 10 marks - 150 words

**Question:** Distinguish constitutional borrowing from constitutional adaptation with reference to India.

**Directive:** Distinguish

**Model answer:**

Borrowing identifies a source influence; adaptation explains how India changed that influence to serve its own constitutional purposes. The distinction is visible in three examples.

First, India adopted Westminster cabinet government, but Articles 74-75 place it inside a republican, written and judicially reviewable Constitution. Secondly, Fundamental Rights and judicial review reflect US influence, yet India added express restrictions, constitutional writs and a DPSP relationship. Thirdly, Canadian strong-centre federal ideas appear in Union residuary power, but Indian federalism also uses the Seventh Schedule, single citizenship and asymmetric arrangements.

These changes affect operation. Collective responsibility is textually secured in Article 75(3); Parliament is limited by basic structure; and the Union-State balance remains judicially enforceable.

Therefore, constitutional ancestry is evidence of learning, not proof of identity. India imported mechanisms but re-tuned them to a federal, republican and transformative order.

**[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 137]**

**Examiner note:** The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

## ORIGINAL MAINS PRACTICE 2 - 10 marks - 150 words

**Question:** Why must constitutional text, convention, statute and political practice be separated in comparative analysis?

**Directive:** Explain

**Model answer:**

A valid comparison separates legal source from political operation. Constitutional text supplies supreme rules; statutes implement them; conventions guide political actors; practice records how institutions actually behave.

India and the United Kingdom illustrate the need. Collective responsibility is expressly stated in Article 75(3) in India, while much Westminster conduct rests on convention. The UK's Human Rights Act authorises interpretation and declarations of incompatibility, but parliamentary sovereignty remains the legal baseline. In India, Fundamental Rights and judicial review can invalidate legislation.

If sources are collapsed, repeated practice may be mistaken for legal validity, or a convention may be assigned the force of entrenched text. Party majorities may also make formally similar cabinets operate differently.

Thus, compare text with text and practice with practice, then explain how convention and political context mediate each design.

**[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 133]**

**Examiner note:** The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

## ORIGINAL MAINS PRACTICE 3 - 15 marks - 250 words

**Question:** Compare parliamentary and presidential government through the Indian and United States constitutional designs.

**Directive:** Compare

**Model answer:**

India and the United States are constitutional democracies, but they organise executive accountability through different institutional logics.

India uses a dual parliamentary executive. The President is head of State, while the Prime Minister and Council of Ministers exercise political authority and remain collectively responsible to the Lok Sabha under Article 75(3). Ministers sit in Parliament, executive and legislative leadership are fused, and loss of confidence can remove the government. Lok Sabha may be dissolved within constitutional rules.

The United States combines head of State and government in a separately elected President. Presidential and congressional terms are independently grounded; executive officers do not simultaneously sit in Congress. The President cannot dissolve Congress, and Congress cannot remove the President by no-confidence. Removal requires impeachment by the House and conviction by the Senate. Vetoes, appointments, appropriations and oversight create checks but also deadlock.

Fusion gives India continuous political responsibility and easier replacement, yet a disciplined majority may concentrate power. Separation gives the United States tenure stability and multiple veto points, yet divided government may obstruct policy.

Neither model is universally superior. Office design, party system and federal context determine performance; India should improve parliamentary accountability rather than transplant a presidential executive.

#### **[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 199]**

**Examiner note:** The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

#### **ORIGINAL MAINS PRACTICE 4 - 15 marks - 250 words**

**Question:** Compare rights review in India, the United Kingdom, Canada and South Africa.

**Directive:** Compare

**Model answer:**

The four systems protect rights through different combinations of text, limitation and remedy.

India entrenches Fundamental Rights under constitutional supremacy. The Supreme Court and High Courts may invalidate unconstitutional law and issue writs. *Maneka Gandhi* requires fair procedure, while *K. S. Puttaswamy* uses legality, legitimate aim, proportionality and safeguards. Rights coexist with express restrictions and non-justiciable DPSPs.

The United Kingdom protects rights through common law, statutes and the Human Rights Act 1998. Courts seek compatible interpretation and may issue a declaration of incompatibility, but that declaration does not itself invalidate a Westminster Act.

Canada's Charter combines judicial review with section 1 reasonable limits. Section 33 permits an express, renewable override of specified rights; it is a bounded constitutional device, not general parliamentary sovereignty.

South Africa's transformative Bill of Rights expressly includes socio-economic rights. *Grootboom* reviewed whether the housing programme reasonably addressed urgent need; it did not create an unconditional immediate house for every claimant. Section 36 supplies a general limitations framework.

The comparison shows that rights strength depends on the entire chain from text to remedy. India may learn from reasoned limitations and legislative dialogue, but any reform must preserve its own constitutional supremacy and basic-structure commitments.

#### **[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 197]**

**Examiner note:** The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

## ORIGINAL MAINS PRACTICE 5 - 20 marks - 250 words

**Question:** Evaluate India's federal design against the United States, Canada and Australia.

**Directive:** Evaluate

**Model answer:**

India is a federation or Union with constitutionally divided powers and marked centralising features; its design should be evaluated as a bundle rather than labelled quasi-federal.

On legislative allocation, India enumerates Union, State and Concurrent fields and assigns residue to Parliament. Canada also places residue federally, whereas the US Tenth Amendment and Australian design broadly preserve unassigned authority for States. India's Union can alter State boundaries by constitutional procedure, unlike the stronger territorial consent protection associated with US and Australian States.

Shared rule also differs. Rajya Sabha represents States unequally and is indirectly elected. US and Australian Senates use equal State representation; the US Senate additionally confirms appointments and approves treaties. None is equivalent to executive delegation.

India has an integrated judiciary, single citizenship and emergency centralisation. Yet *S. R. Bommai* affirms federalism and subjects Article 356 to review. Fiscal federalism operates through tax assignment, the Finance Commission, grants and the GST Council; formal State powers therefore coexist with vertical dependence. Asymmetry accommodates distinctive regions within the Union.

Canada confirms that a federation may constitutionally favour the centre; the United States and Australia show stronger constituent-unit protection. India's synthesis sought unity after Partition while preserving diversity.

Reform should strengthen consultation, predictable finance and institutional federalism, not pursue formal symmetry. The design is federal in structure, Union-weighted in operation and constitutionally reviewable.

**[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 221]**

**Examiner note:** The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

## ORIGINAL MAINS PRACTICE 6 - 20 marks - 250 words

**Question:** Assess whether foreign constitutional mechanisms should be transplanted into India.

**Directive:** Assess

**Model answer:**

Foreign constitutional experience is a laboratory, not a catalogue. A transplant should pass functional, structural, incentive, capacity, rights and accountability tests.

First, identify the public function. US Senate confirmation seeks visible democratic participation in judicial appointments; India's collegium protects judges from executive primacy. Importing hearings without accounting for party polarisation may exchange opacity for partisan capture. The better lesson is published criteria, reasons and timelines within accountable independence.

Secondly, test structural fit. Canada's section 33 operates within Charter supremacy and applies only to specified rights. Detached from those limits, an Indian override could weaken basic-structure and rights protection. Germany's textual eternity clause and India's judicially developed basic structure protect identity through different sources; identical drafting is unnecessary.

Thirdly, examine political incentives and capacity. Westminster conventions operate within a distinct party and constitutional history. India codified collective responsibility and subjects Parliament to rights, federalism and review. Borrowed rules consequently perform a different job.

Comparative judgments such as *Marbury*, *Youngstown*, *Miller*, *Grootboom* and *Makwanyane* may offer persuasive reasons, but Article 141 and Indian text control the result.

India should adopt transferable principles-transparency, proportionality, federal consultation and time-limited emergency supervision-while redesigning mechanisms for Indian institutions. Fit, not fidelity to the donor, is the constitutional standard.

**Examiner note:** The model follows claim -> named evidence -> analysis -> qualification and stays within the stated ceiling.

## OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

### Controlled comparison

Hold the public function constant and compare source, selection, tenure, removal, power, accountability, political context and outcome. Similar titles can conceal different institutions; different legal forms can serve similar functions.

### Transplantation and functional substitution

Borrowing passes through founding conditions, social cleavages, party incentives, legal culture, state capacity and judicial development. The result may be adaptation, hybridisation or functional substitution rather than replication. A reform proposal should therefore identify the precise Indian problem before selecting foreign evidence.

### Trade-offs and veto players

Parliamentary responsibility clarifies political removal but can concentrate majority power. Presidential separation adds veto players and tenure stability but may create deadlock. Federal self-rule protects diversity; shared rule enables common action. Judicial review protects constitutional commitments but can shift responsibility toward courts.

### Rigidity and constitutional identity

Rigidity includes proposal, supermajority, federal consent, referendum, time and substantive limits. Germany's textual Article 79(3) eternity clause and India's judicially developed basic structure pursue related protective purposes through different legal sources. Canada's Part V and South Africa's section 74 demonstrate subject-sensitive thresholds.

### Reform-fit test

Before recommending a foreign mechanism, test: **functional fit -> structural fit -> political incentives -> implementation capacity -> rights impact -> transition cost -> accountability**. Comparative law is a laboratory, not a shopping catalogue.

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## CONSOLIDATED REGISTER NOTES

### The comparison method

- Compare the **same public function**, not the same noun.
- Axes: **source/text -> selection -> tenure -> removal -> powers -> accountability -> political context -> consequence**.
- Keep **constitutional text, statute, convention, judgment and practice** separate.
- Compare text with text and practice with practice; avoid false equivalence and selective idealisation.

### Executive design

- India/UK: parliamentary responsible government; dual executive; lower-house confidence; fusion with accountability.
- USA: President combines head of State/government; separate mandate and tenure; checks and balances; no presidential dissolution of Congress.
- Loss of confidence, dissolution, veto, impeachment and judicial removal are distinct mechanisms.
- Never claim the Indian President may independently dismiss a Prime Minister who retains a Lok Sabha majority.



## Federal design

- India: Union/federation with divided powers and centralising features; do not rely on the quasi-federal slogan.
- Residue: **India/Canada -> federal level; USA/Australia -> constituent units broadly.**
- Rajya Sabha: unequal, indirectly elected; US/Australian Senates: equal-State; Canadian Senate: appointed regional; Bundesrat: Land-government delegation.
- Compare amendment, emergency, judicial review, fiscal federalism and asymmetry with legislative lists.
- Fiscal autonomy = revenue assignment + transfers + borrowing + institutions; asymmetry can integrate diversity.

## Rights and review

- India: Part III, writs and invalidation; *Maneka Gandhi* fairness; *Puttaswamy* proportionality.
- USA: due process/equal protection and strong-form review.
- UK Human Rights Act declaration of incompatibility does **not** invalidate the Act.
- Canada: section 1 reasonable limits; section 33 bounded, express and renewable override for specified rights.
- South Africa: textual socio-economic rights; section 36 limitation; *Grootboom* reasonableness, not automatic delivery.
- Parliamentary sovereignty is British doctrine, not India's constitutional position.

## Courts and appointments

- India: collegium through Judges Cases; NJAC judgment (2015); Article 124(4) removal for proved misbehaviour or incapacity.
- USA: President nominates; Senate advice and consent; good-behaviour tenure; House impeachment and Senate conviction.
- UK: statutory JAC architecture after Constitutional Reform Act 2005.
- South Africa: JSC participation in appointments and removal architecture.
- Reform verdict: **accountable independence**, not executive primacy or mechanical US transplantation.

## Amendment and emergency

- India: multiple routes; Article 368 special majority; half-State ratification for specified matters; basic structure.
- USA Article V: proposal supermajority plus three-fourths State ratification; no presidential veto.
- UK: no single entrenched amendment code; ordinary legislation plus political constraints.
- South Africa section 74 and Canada Part V: differentiated formulae.
- Emergencies: compare trigger, approval, duration, rights, federal effect, review and termination.
- India: Forty-fourth Amendment safeguards; *S. R. Bommai* review. Weimar is a warning; *Youngstown* limits US executive claims; France Article 16 is context-specific.

## Borrowings: source plus Indian effect

| Source         | Conventional influence                                  | Indian adaptation                                                              |
|----------------|---------------------------------------------------------|--------------------------------------------------------------------------------|
| UK             | parliamentary cabinet, rule of law                      | written republican supremacy, federalism, judicial review                      |
| USA            | Fundamental Rights, judicial review, impeachment        | express restrictions, writs, parliamentary executive                           |
| Ireland        | DPSPs, nominated Rajya Sabha members                    | social-transformation programme; non-justiciable but fundamental in governance |
| Canada         | strong-centre federation, residue, Governor appointment | Union with States, asymmetry and Indian accountability rules                   |
| Australia      | Concurrent List, joint sitting, trade provisions        | unequal Rajya Sabha and Indian amendment design                                |
| Germany/Weimar | emergency-related ideas                                 | post-1975 safeguards and Indian judicial review                                |

| Source       | Conventional influence                                       | Indian adaptation                                                |
|--------------|--------------------------------------------------------------|------------------------------------------------------------------|
| former USSR  | Fundamental Duties, social/economic/political justice ideals | Part IVA duties and Preamble within democratic constitutionalism |
| South Africa | amendment elements, Rajya Sabha election method              | Indian thresholds and basic-structure limitation                 |
| Japan        | procedure established by law                                 | fairness and proportionality through Indian doctrine             |

### Cases and comparative citation

- India: *Kesavananda Bharati*, *Minerva Mills*, *S. R. Bommai*, *K. S. Puttaswamy*, NJAC judgment.
- Foreign bounded examples: *Marbury* (US review), *Youngstown* (executive limits), *Miller* (UK constitutional limits), *Grootboom* (socio-economic reasonableness), *Makwanyane* (transformative rights reasoning).
- Foreign judgments are persuasive, never binding Indian law; Article 141 remains the Indian binding-law anchor.

### 20-second answer spine

Define function -> locate legal source -> compare 5-7 institutional axes -> attach named evidence -> state constitutional consequence -> identify contextual limit -> return to India -> qualified adaptation verdict.